TRAFFICKING OF WOMEN AND CHILDREN: A STUDY OF LEGAL FRAMEWORK, JUDICIAL RESPONSE AND POLICY GAPS IN INDIA

A Dissertation Submitted for Academic Purposes

Submitted by

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LIST OF ABBREVIATIONS

AIR	: All India Report
Art.	: Article
CEDAW	: Central Adoption Resources Authority Convention on the Elimination of All Forms of Discrimination Against Women
CrPC	: Code of Criminal Procedure
IPC	: Indian Penal Code
ITPA	: Immoral Traffic (Prevention) Act
ILO	: International Labour Organization
JJ Act	: That is Juvenile Justice (Care and Protection of Children) Act
MWCD	: Ministry of Women and Child Development
NCW	: National Commission for Women
NHRC	: National Human Rights Commission
NCRB	: National Crime Records Bureau
POCSO	: Protection of Children from Sexual Offences Act
SMA	: Special Marriage Act
SC	: Supreme Cases
SCC	: Supreme Court Cases
Sec.	: Section
UNCRC	: United Nations Convention on the Rights of the Child
U/S.	: Under Section
UNODC	: United Nations Office on Drugs and Crime

LIST OF CASES

1. Vishal Jeet v. Union of India (1990) 3 SCC 318
2. Gaurav Jain v. Union of India (1997) 8 SCC 114
3. Budhadev Karmaskar v. State of West Bengal (2011) 10 SCC 283
4. Prajwala v. Union of India (2015) 16 SCC 255
5. Bachpan Bachao Andolan v. Union of India (2011)
6. People's Union for Democratic Rights v. Union of India AIR 1982 SC 1473
7. Neeraja Chaudhary v. State of Madhya Pradesh AIR 1984 SC 1099
8. Bandhua Mukti Morcha v. Union of India AIR 1984 SC 802
9. Lakshmi Kant Pandey v. Union of India AIR 1984 SC 469
10. State of Karnataka v. Krishnappa (2000) 4 SCC 75

INDEX

Sr. No.	PARTICULARS	Page No.
I	**DECLARATION**	
II	**CERTIFICATE**	
III	**ACKNOWLEDGEMENT**	
IV	**DISCLAIMER BY RESEARCH SUPERVISOR**	
V	**LIST OF ABBREVIATIONS**	
VI	**LIST OF CASES**	
Chapter 1	**INTRODUCTION TO RESEARCH STUDY**	**1-16**
1.1	Introduction	1-4
1.2	Significance of the Study	4-6
1.3	Statement of the Problem	6-8
1.4	Aims and Objectives	8-9
1.5	Hypotheses	9
1.6	Research Methodology	9-10
1.7	Scope of the Study	10-13
1.8	Limitations of the Study	13
1.9	Review of Literature	14-16
Chapter 2	**CONCEPTUAL FRAMEWORK OF TRAFFICKING**	**17-37**
2.1	Introduction	17-19
2.2	Meaning and Definition of Human Trafficking	19-22

2.3	Historical Evolution of Trafficking	22-25
2.4	Forms of Trafficking Affecting Women and Children	26-28
2.5	Structural Causes and Drivers of Trafficking	28-30
2.6	Patterns of Trafficking in India	30-31
2.7	Consequences of Trafficking for Women and Children	31-34
2.8	Technology and the Changing Dynamics of Trafficking	34-36
2.9	Conclusion	36-37
Chapter 3	**LEGAL FRAMEWORK: DOMESTIC LEGISLATION AND INTERNATIONAL OBLIGATIONS**	**38-63**
3.1	Introduction	38-41
3.2	Constitutional Provisions Relating to Trafficking	41-45
3.3	Immoral Traffic (Prevention) Act, 1956	45-50
3.4	Indian Penal Code Provisions on Trafficking	51-55
3.5	Protection of Children from Sexual Offences Act, 2012 (POCSO)	56-58
3.6	Juvenile Justice (Care and Protection of Children) Act, 2015	58-59
3.7	Bonded Labour System (Abolition) Act, 1976	60-61

3.8	International Legal Framework	61-63
Chapter 4	**JUDICIAL RESPONSE: CASE LAW ANALYSIS AND JUDICIAL TRENDS**	**64-78**
4.1	Introduction	64-65
4.2	Public Interest Litigation and Judicial Intervention in Trafficking Cases	66-68
4.3	Landmark Supreme Court Judgments	68-73
4.4	High Court Jurisprudence on Trafficking	73-75
4.5	Judicial Trends and Critical Evaluation	75-76
4.6	Additional Judicial Interventions in Combating Human Trafficking	77-78
Chapter 5	**POLICY GAPS AND IMPLEMENTATION FAILURES**	**79-93**
5.1	Introduction	79-80
5.2	Fragmentation within the Legal Framework	81-83
5.3	Limitations in Enforcement and Institutional Coordination	83-85
5.4	Challenges in Victim Protection and Rehabilitation	85-88
5.5	Assessment of Government Rehabilitation and Prevention Schemes	88-91
5.6	Deficiencies in Data Collection and Policy Planning	91-93

Chapter 6	**FINDINGS, SUGGESTIONS AND CONCLUSION**	**94-105**
6.1	Introduction	94-95
6.2	Major Findings of the Study	95-98
6.3	Suggestions and Policy Recommendations	98-100
6.4	Legislative Reforms	101-103
6.5	Conclusion	104-105
	BIBLIOGRAPHY	**106-112**

CHAPTER 1

INTRODUCTION TO RESEARCH STUDY

1.1 Introduction

India's encounter with human trafficking is not a problem that arrived with globalisation or the expansion of digital networks. It is a crisis rooted in the country's own historical and structural realities — in the persistence of caste-based marginalisation, in acute rural poverty, in deeply gendered social hierarchies, and in the chronic failure of the state to enforce the rights it promises on paper. What distinguishes trafficking from many other crimes is that it does not merely exploit individual victims; it exploits entire systems of inequality. To examine trafficking in India is, therefore, to examine India itself.

This research is motivated by a discernible gap between legal aspiration and legal reality. India possesses a constitutional prohibition on trafficking under Article 23, reinforced by a body of criminal legislation spanning over six decades. The Immoral Traffic (Prevention) Act, 1956 laid the earliest statutory foundation. The Criminal Law (Amendment) Act, 2013 then introduced Sections 370 and 370A into the Indian Penal Code, providing a broader definition of trafficking aligned with international standards. Most recently, and most significantly for the contemporary legal landscape, the Bharatiya Nyaya Sanhita, 2023 (hereinafter BNS) came into force on July 1, 2024, replacing the Indian Penal Code in its entirety. Section 143 of the BNS now constitutes the primary legislative provision on trafficking of persons, defining the offence as the recruitment, transportation, harboring, transfer, or

receipt of any person through means such as threats, force, coercion, abduction, fraud, deception, abuse of power, or inducement, for the purpose of exploitation. Section 144 of the BNS separately penalises the sexual exploitation of trafficked persons. Together, these provisions represent the current operative law and must be at the centre of any analysis of India's anti-trafficking legal framework.

The BNS's formulation in Section 143 carries several notable advances over its predecessor. Explanation 1 to Section 143 expands the definition of 'exploitation' to include not only physical and sexual exploitation, slavery, and servitude, but also beggary — a form of trafficking that was conspicuously absent from IPC Section 370 despite being widespread in India's urban centres. Explanation 2 makes explicit what was previously a matter of judicial interpretation: that the consent of the victim is immaterial to the determination of the offence. Furthermore, Section 143(7) imposes natural life imprisonment on any public servant or police officer found to be involved in trafficking — a provision that directly addresses the institutional corruption identified as a structural enabler of trafficking in numerous judicial decisions and policy assessments. Additionally, Section 111 of the BNS, which creates a new offence of organised crime applicable when criminal activity is carried on by a syndicate as a continuing unlawful activity for material benefit, explicitly enumerates human trafficking for prostitution or ransom as one such activity, enabling prosecutors to pursue trafficking syndicates with the full force of organised crime enforcement mechanisms, including property forfeiture.

The enactment of the BNS does not render prior judicial decisions obsolete — those judgments continue to inform the interpretive principles applicable

under the new law — but it does fundamentally change the statutory reference point for all future prosecution and adjudication. A dissertation that analyses India's anti-trafficking legal framework without accounting for the BNS would be examining a framework that no longer operates as current law. This research therefore treats BNS Sections 143, 144, and 111, alongside Sections 95 to 99 governing offences against children, as the primary criminal law instruments while retaining the historical analysis of IPC provisions to illuminate the developmental arc of India's legislative response.

India's position within the global trafficking landscape remains structurally unchanged by these legislative developments. The country simultaneously produces, receives, and serves as a transit corridor for trafficked persons. Internal movement — from economically distressed rural districts in states such as Jharkhand, West Bengal, Odisha, and Bihar towards metropolitan labour markets — accounts for the majority of trafficking activity. Cross-border flows, particularly from Nepal and Bangladesh, add a further dimension requiring bilateral legal cooperation. Women and girls are trafficked primarily into commercial sexual exploitation, forced domestic labour, and coerced marriage; children are exploited in bonded labour, begging rings, and through digital recruitment channels. The clandestine nature of these networks, combined with the vulnerability of victims, makes detection and prosecution persistently difficult.

This research undertakes a structured examination of three interlocking dimensions of India's response: the legal framework governing trafficking, now headed by the BNS; the nature and limits of judicial intervention in trafficking-related matters; and the policy gaps that allow exploitation to

persist even where laws nominally prohibit it. The approach is doctrinal and comparative, combining analysis of Indian statutory provisions and judicial pronouncements with insights drawn from the United States' Trafficking Victims Protection Act, Sweden's Nordic Model, and the European Union's Anti-Trafficking Directive 2011/36/EU. A central argument threading through this research is that effective anti-trafficking law cannot be built on criminal sanctions alone. The BNS has improved India's legislative text substantially; the task now is to build the institutional infrastructure, the coordinated enforcement capacity, and the survivor-centred policy architecture that can make that text effective.

1.2 Significance of the Study

The intellectual justification for a study of this kind does not rest on the novelty of the topic. What justifies renewed scholarly engagement is the inadequacy of existing responses and the need for integrated legal and policy analysis that moves beyond compartmentalised treatments of the problem. The enactment of the BNS in 2023, and its commencement in July 2024, creates an additional reason for contemporary academic examination: the replacement of the IPC with an entirely new criminal code demands scholarly assessment of whether the new framework constitutes a genuine improvement over what it replaces and what structural gaps remain unaddressed.

The study holds significance, first, because of the scale of the problem in India. National Crime Records Bureau data on trafficking-related offences captures only cases that enter formal criminal documentation — a small and

systematically unrepresentative fraction of actual trafficking. Official data substantially understates the prevalence of trafficking, and the gap between reporting and reality reflects a failure not only of policing but of the legal culture surrounding victim protection. Any honest legal analysis must begin from this reality.

From a statutory law standpoint, the study contributes to understanding how the BNS's trafficking provisions — particularly the graduated sentencing structure of Section 143, the consent clarification in Explanation 2, the expansion to include beggary, and the organised crime framework of Section 111 — represent developments over the IPC framework, and where the new code's limitations lie. The study also examines the child-specific provisions of the BNS, particularly Sections 95 to 99, which govern procuration of children, hiring children to commit offences, and the selling and buying of children for prostitution. These provisions, scattered across Chapter V of the BNS under the heading of offences against women and children, must be read alongside Section 143 to understand the complete architecture of child trafficking law under the current statutory regime.

The study's significance for judicial research lies in its examination of PIL jurisprudence developed under the IPC framework and its continued applicability under the BNS. Courts are now operating in a transitional environment — cases registered before July 2024 proceed under the IPC, while later cases are governed by the BNS. Understanding how judicially-developed principles on consent, coercion, victim protection, and institutional accountability translate between the two statutory frameworks is a practical question that courts, prosecutors, and legal practitioners require guidance on.

Finally, the study contributes to policy discourse at a moment when both the legislative landscape and its institutional infrastructure are in flux. The BNS has been enacted; the comprehensive Trafficking in Persons (Prevention, Care and Rehabilitation) Bill has not. By identifying what the BNS has achieved and what it has not addressed, this research aims to provide a detailed analytical foundation that could inform both the Bill's eventual enactment and the administrative reforms that must accompany it.

1.3 Statement of the Problem

The central problem this research addresses is not the absence of law, but the failure of law to function. India has, on paper, a substantial anti-trafficking legal architecture. Article 23's constitutional prohibition is non-derogable. BNS Section 143 provides a broad and internationally-aligned definition of trafficking with a graduated sentencing structure that imposes severe penalties for the most serious forms of the offence. Section 111's organised crime provision explicitly encompasses human trafficking and enables property forfeiture against trafficking syndicates. Sections 95 to 99 address child-specific trafficking offences with penalties ranging up to fourteen years' rigorous imprisonment. POCSO, the JJ Act, and the Bonded Labour System (Abolition) Act collectively cover major forms of exploitation involving women and children. Yet convictions in trafficking cases remain rare, rehabilitative support for survivors remains patchy, and trafficking networks continue to operate with a degree of impunity that no serious legal system should tolerate.

This gap between legal text and legal reality is not accidental. It is produced by a set of specific, identifiable failures that this research investigates. The first is legislative fragmentation. Despite the BNS's improvements, India still lacks a single comprehensive anti-trafficking statute. The ITPA 1956 continues in force alongside BNS Section 143, the JJ Act addresses child protection under a separate welfare framework, and the Bonded Labour Act governs labour exploitation under yet another institutional regime. The BNS has strengthened individual provisions without resolving the structural fragmentation between these parallel legislative tracks.

The second failure is institutional. Anti-Human Trafficking Units exist in several states but are inadequately staffed, poorly trained, and insufficiently coordinated with the labour, child protection, and welfare agencies whose cooperation is essential for effective trafficking investigations. The BNS's Section 111 organised crime provision creates powerful new enforcement possibilities, but those possibilities will remain unrealised if investigators lack the training to build organised crime cases against trafficking syndicates.

Third, victim protection mechanisms remain structurally underdeveloped. The BNS's Explanation 2 to Section 143 clarifies that consent is immaterial, and Section 143(7) creates a severe deterrent against official complicity in trafficking. But the law contains no victim identification protocol, no mandatory shelter provision, no survivor cooperation mechanism of the kind that enables trafficking victims to participate in prosecution without fear of reprisal, and no non-prosecution guarantee for offences committed as a direct consequence of being trafficked. Legislative text that does not provide

for these supports will fail survivors however severe its sentencing provisions become.

Fourth, and most fundamentally, the data situation is deeply problematic. Credible, comprehensive, disaggregated data on trafficking patterns, victim demographics, prosecution outcomes, and rehabilitation results does not exist at a national level. The BNS creates no data collection obligation. Policy cannot be evidence-based where evidence is not generated, and this deficiency perpetuates a cycle in which interventions are designed without reliable information about the problem they are intended to address.

1.4 Aims and Objectives of the Study

The primary aim of this research is to critically examine the trafficking of women and children in India through an analysis of the legal framework, judicial response, and policy implementation mechanisms.

The specific objectives of the study include:

1. To analyze the legal framework governing trafficking of women and children in India.
2. To examine relevant international conventions and India's obligations under international law relating to trafficking.
3. To study judicial responses and landmark court decisions concerning trafficking cases.
4. To identify gaps and inconsistencies in existing anti-trafficking legislation and enforcement mechanisms.

5. To evaluate the effectiveness of policy initiatives and rehabilitation programs for trafficking survivors.
6. To propose legal and policy reforms aimed at strengthening the prevention and prosecution of trafficking and improving victim protection mechanisms.

1.5 Hypotheses

1. The fragmented nature of India's anti-trafficking legal framework contributes to inconsistent enforcement and prosecution of trafficking offences.
2. Judicial activism has played a significant role in strengthening victim protection and shaping anti-trafficking jurisprudence in India.
3. Policy initiatives aimed at rehabilitation of trafficking survivors remain insufficient due to weak implementation and institutional coordination.
4. Adoption of comprehensive legislative reforms and integrated policy mechanisms can significantly improve India's response to trafficking of women and children.

1.6 Research Methodology

The present study adopts a **doctrinal research methodology**, focusing primarily on the analysis of legal texts, judicial decisions, and scholarly literature related to trafficking of women and children.

The research relies on **secondary sources of data**, including:

- Constitutional provisions and statutory enactments
- Judicial decisions of the Supreme Court and High Courts
- International conventions and treaties
- Academic books and journal articles
- Reports published by governmental and international organizations such as UNODC, ILO, and NCRB
- Policy documents and government schemes relating to anti-trafficking initiatives

The study also employs **comparative legal analysis** to evaluate India's anti-trafficking framework in relation to international standards and best practices adopted in other jurisdictions.

1.7 Scope of the Study

The present research investigates the issue of trafficking of women and children in India by focusing on the legal and institutional mechanisms designed to address this form of exploitation. Human trafficking involves a wide range of activities including recruitment, transportation, and exploitation of vulnerable individuals through coercion, deception, or abuse of power. Because of its complex nature, trafficking intersects with multiple areas of law such as criminal justice, human rights protection, labour

regulation, and child welfare. The scope of this study is therefore defined primarily by its examination of the legal structures and policy responses developed to combat trafficking within the Indian context.

A central aspect of the research is the analysis of **domestic legislation that governs trafficking-related offences**. The study evaluates statutory provisions contained in key laws that address exploitation and protection of vulnerable groups. These include the *Immoral Traffic (Prevention) Act, 1956*, relevant provisions of the *Indian Penal Code*, the *Protection of Children from Sexual Offences Act, 2012*, the *Juvenile Justice (Care and Protection of Children) Act, 2015*, and the *Bonded Labour System (Abolition) Act, 1976*. Each of these statutes addresses particular dimensions of trafficking, such as sexual exploitation, child abuse, forced labour, and victim rehabilitation. By examining these legislative frameworks, the study assesses the extent to which Indian law is capable of addressing the varied manifestations of trafficking.

The scope of the research also extends to the **constitutional framework that provides protection against exploitation**. Constitutional provisions that prohibit trafficking and forced labour serve as the foundation upon which many anti-trafficking laws have been developed. These constitutional guarantees are significant because they frame trafficking not merely as a criminal offence but as a violation of fundamental rights. The study therefore considers how constitutional principles related to dignity, equality, and freedom influence legislative and judicial approaches to combating trafficking.

In addition to legislative analysis, the research examines the **contribution of the judiciary in shaping anti-trafficking jurisprudence**. Courts in India

have played an important role in interpreting laws relating to trafficking and in directing authorities to take measures for the protection and rehabilitation of victims. Judicial decisions delivered by the Supreme Court and various High Courts provide important insights into how the legal system addresses complex issues such as victim identification, rehabilitation, and institutional accountability. The study therefore analyses selected landmark judgments to understand the evolving judicial perspective on trafficking.

The research further explores **policy initiatives and administrative mechanisms implemented by the government to prevent trafficking and assist survivors**. Programs designed to provide shelter, counselling, and vocational training to victims are examined in order to evaluate their effectiveness in promoting long-term rehabilitation. The study also considers the functioning of enforcement institutions responsible for implementing anti-trafficking measures.

While the principal focus of this research remains on India, the scope of the study also includes a **comparative examination of selected international approaches** to combating trafficking. Legal frameworks developed in other jurisdictions provide useful insights into how different countries address trafficking through legislative and policy reforms. Comparative analysis enables the identification of practices that may be adapted or considered in strengthening India's anti-trafficking framework.

It is important to note that the research adopts a **doctrinal and analytical approach**, relying primarily on statutory materials, judicial decisions, government reports, and scholarly writings. The study does not involve field-based empirical research or direct interaction with victims of trafficking. Instead, the focus remains on evaluating legal and policy

structures in order to identify gaps and propose reforms that could improve the effectiveness of anti-trafficking efforts.

In summary, the scope of the present study is confined to examining the **legal, judicial, and policy dimensions of trafficking of women and children in India**, while drawing limited comparative insights from international frameworks to develop recommendations for strengthening existing mechanisms.

1.8 Limitations of the Study

While the research attempts to provide a comprehensive analysis of trafficking laws and policies in India, certain limitations must be acknowledged.

First, the study relies primarily on secondary sources, which may not fully capture the experiences of trafficking survivors or the operational challenges faced by enforcement agencies. Second, the availability of reliable and consistent statistical data on trafficking remains limited, as trafficking is often underreported. Third, the scope of the research is restricted to legal and policy analysis within the Indian context, and therefore does not include extensive empirical fieldwork or interviews.

Despite these limitations, the study seeks to provide a meaningful contribution to the understanding of trafficking in India by critically examining the legal and institutional frameworks governing this issue.

1.9 Review of Literature

The scholarly literature on human trafficking spans criminology, international law, feminist legal theory, development economics, and human rights studies. The enactment of the BNS in 2023 adds a new dimension to the literature specific to Indian anti-trafficking law: the need for commentary that assesses the new code's provisions against both the prior IPC framework and international standards. At the time of this research, scholarly analysis of BNS Sections 143, 144, and 111 in the trafficking context remains limited, since the provisions are recent. This study therefore contributes to an emerging conversation about the BNS's adequacy as an anti-trafficking instrument, building on the substantial body of scholarship that engaged with the IPC framework.

Among foundational works in the field, Kevin Bales's scholarship on contemporary forms of slavery argues that modern exploitation is sustained through economic control, debt manipulation, and the exploitation of social vulnerability — mechanisms that are less visible than historical slavery but no less coercive in their practical effect. Bales's framework is relevant to the BNS's definitional structure: the inclusion of beggary and servitude within the Explanation 1 definition of 'exploitation' in Section 143 reflects precisely the insight that trafficking encompasses forms of control that do not involve overt physical force. The critical limitation of Bales's work for this study is that it engages with law primarily as a diagnostic instrument rather than as a domain of analysis in its own right.

Siddharth Kara's investigation of sex trafficking in South Asia argues that trafficking persists because it is extraordinarily profitable and relatively low-risk for perpetrators. BNS Section 111's organised crime provision and its

property forfeiture mechanism directly engage with the economic logic Kara identifies: targeting the financial infrastructure of trafficking networks, rather than merely prosecuting individual traffickers, is a recognition that profitability is the engine of the enterprise. Kara's work, however, does not engage with Indian legal doctrine or the specific institutional failures of the Indian enforcement system — gaps this study directly addresses.

Within the Indian legal scholarship, Upendra Baxi's work provides a foundational perspective on the relationship between law and social transformation. Baxi argues that constitutional rights guarantees require institutional will, resource investment, and political commitment to translate into lived protection. Applied to the BNS, this perspective explains why the improvements in Section 143's sentencing structure and Section 111's organised crime provisions will not automatically produce better outcomes: institutional will and enforcement capacity are not created by legislative text alone. The BNS may have closed some legal gaps; Baxi's framework suggests that the institutional gaps it leaves open are the more consequential obstacles.

Research published in the Indian Law Review and allied journals has documented the fragmented character of India's anti-trafficking statutory framework. These studies observe that the ITPA, IPC Sections 370 and 370A, POCSO, the JJ Act, and the Bonded Labour Act collectively address most major forms of trafficking without constituting a coherent integrated regime. The BNS's enactment has partially but not fully addressed this critique: Section 143's consolidated definition is an improvement, but the ITPA, POCSO, and the Bonded Labour Act remain in force as separate statutory tracks, and the BNS creates no mechanism for coordinating their

application in cases that engage multiple forms of exploitation simultaneously.

Comparative scholarship on the United States' TVPA, Sweden's Nordic Model, and the EU Anti-Trafficking Directive provides benchmarks against which the BNS framework can be assessed. The TVPA's 'three Ps' structure demonstrates that effective anti-trafficking legislation must integrate prevention, prosecution, and protection within a unified framework — the BNS addresses prosecution but leaves prevention and protection largely to other instruments. The EU Directive's national rapporteur mechanism, requiring systematic data collection and institutional monitoring, has no equivalent in the BNS or in any other current Indian statute. Sweden's demand-reduction approach highlights an aspect of trafficking that the BNS does not engage at all: the criminalization of demand for sexual services as a strategy to reduce the market that sustains sexual trafficking.

CHAPTER 2

CONCEPTUAL FRAMEWORK OF HUMAN TRAFFICKING

2.1 Introduction

Before a legal framework can be evaluated, the phenomenon it seeks to regulate must be understood on its own terms. In the case of human trafficking, this is not a straightforward task. The term 'trafficking' appears, on the surface, to describe a discrete criminal act — the movement of a person from one place to another for purposes of exploitation. But this formulation obscures more than it reveals. Trafficking is better understood as a process: one that begins in conditions of vulnerability, proceeds through manipulation or coercion, and terminates in circumstances of sustained exploitation from which exit is difficult or impossible. To analyse trafficking solely as a crime is to mistake the final chapter for the whole story.

India's legal definition of trafficking has evolved considerably over time, and the most current articulation appears in Section 143 of the Bharatiya Nyaya Sanhita, 2023. This provision defines the offence through three interconnected elements: the act of recruitment, transportation, harboring, transfer, or receipt of a person; the means employed, which include threats, force, coercion, abduction, fraud, deception, abuse of power, or inducement; and the purpose of exploitation. Explanation 1 to Section 143 defines 'exploitation' as encompassing any act of physical exploitation, any form of sexual exploitation, slavery or practices similar to slavery, servitude, forced beggary, or forced removal of organs. The explicit inclusion of beggary — absent from the predecessor provision under IPC Section 370 — marks a

significant doctrinal advance, acknowledging a form of trafficking particularly prevalent in Indian cities but previously occupying an ambiguous legal space. Explanation 2 to Section 143 further clarifies that the consent of the victim is wholly immaterial to determination of the offence, codifying the principle that apparent consent obtained through deception or exploitation of vulnerability cannot legitimise the underlying exploitation.

The legal definition, however, should be distinguished from the social reality of trafficking, and that distinction is analytically important. A person may be subject to conditions that any reasonable observer would recognise as exploitative without those conditions crossing the legal threshold of Section 143. Conversely, trafficking law may sometimes be applied to situations that lack the sustained coercive character it is designed to address. This permanent gap between legal category and social reality is not a defect to be apologised for; it is a feature of the relationship between law and social life that this research keeps in view throughout.

Within India, the conceptual understanding of trafficking cannot be separated from the country's long history of caste-based labour exploitation, from the persistence of patriarchal social structures that systematically limit women's economic options, and from the scale of poverty that generates a steady supply of individuals whose vulnerability can be monetised by organised criminal networks. Section 111 of the BNS, which classifies human trafficking as organised crime when conducted by a syndicate as a continuing unlawful activity for material benefit, reflects a belated legislative recognition that trafficking is not a series of isolated criminal acts but a systematic enterprise. The organised crime framework introduces the possibility of property forfeiture against trafficking networks, targeting the

financial infrastructure that makes exploitation profitable — an enforcement dimension entirely absent from the earlier IPC framework.

This chapter establishes the conceptual foundation for the remainder of the research. By examining how trafficking is defined, how it has evolved historically, what forms it takes in practice, and what structural conditions sustain it, the chapter clarifies the phenomenon that the legal and policy frameworks analysed in later chapters are designed to address.

2.2 Meaning and Definition of Human Trafficking

Defining human trafficking has been a central challenge in international and domestic legal discourse. Earlier legal frameworks often focused on specific forms of exploitation—particularly prostitution—without recognizing the broader spectrum of activities through which trafficking may occur. Over time, international law has adopted a more comprehensive definition that captures the multiple stages and methods involved in trafficking.

One of the most influential definitions appears in the **United Nations Protocol to Prevent, Suppress and Punish Trafficking in Persons**, adopted in 2000. The Protocol describes trafficking as a process involving the recruitment, movement, or harbouring of individuals through coercion, deception, abuse of authority, or exploitation of vulnerability for the purpose of exploitation[1]. This formulation identifies three essential elements: the

[1] Protocol to Prevent, Suppress and Punish Trafficking in Persons, Especially Women and Children (2000) art 3.

actions performed by traffickers, the methods used to control victims, and the exploitative objective that motivates the trafficking process.

The adoption of this definition represented an important development in international law because it expanded the scope of trafficking beyond sexual exploitation. Under the Protocol, exploitation may include forced labour, servitude, slavery-like practices, removal of organs, and other forms of coercive exploitation. This broader understanding recognizes that trafficking occurs in multiple economic sectors and affects diverse groups of individuals.

Another significant aspect of the Protocol's definition is the treatment of consent. In many trafficking situations, victims initially agree to travel or accept employment offers proposed by traffickers. However, such consent may be obtained through deception or abuse of vulnerability. International law therefore establishes that consent cannot be considered valid when the means used to recruit or control victims involve coercion, fraud, or manipulation. This principle reflects the recognition that apparent consent may conceal underlying exploitation.

The influence of the Palermo Protocol is evident in the development of anti-trafficking legislation in many countries, including India. Amendments to the **Indian Penal Code in 2013 introduced a revised definition of trafficking under Section 370**, which incorporates many of the elements recognized in international law. The provision identifies trafficking as the recruitment, transportation, harbouring, transfer, or receipt of a person for

purposes of exploitation through methods such as threats, coercion, fraud, deception, or abuse of power[2].

The revised statutory framework also clarifies that exploitation includes practices such as sexual exploitation, forced labour, slavery-like conditions, and removal of organs. By articulating these elements within a single provision, the amendment sought to move beyond earlier legal approaches that addressed trafficking through scattered offences related to prostitution, kidnapping, or child exploitation.

Nevertheless, applying the legal definition of trafficking in practice presents certain challenges. One difficulty arises from the overlapping nature of trafficking with other criminal offences. For example, trafficking may involve elements of kidnapping, unlawful confinement, forced labour, or sexual assault, each of which may fall under separate legislative provisions. Determining the most appropriate legal charges therefore requires careful assessment of the specific circumstances of each case.

Another challenge relates to the identification of victims. Trafficked persons may initially appear to be voluntary migrants or workers, particularly when they have travelled willingly or accepted employment opportunities. However, once they enter exploitative conditions where their freedom is restricted or their labour is coerced, the situation may fall within the legal definition of trafficking. Recognizing these circumstances requires investigators and authorities to look beyond surface-level appearances and examine the conditions under which individuals are working or living.

[2] Indian Penal Code 1860, s 370 (as amended by Criminal Law (Amendment) Act 2013).

The distinction between trafficking and migrant smuggling also remains an important aspect of the legal framework. Smuggling generally involves the facilitation of illegal entry into a country in exchange for payment, without necessarily involving exploitation after arrival. Trafficking, on the other hand, is characterized by the intention to exploit individuals through coercive or deceptive practices[3]. While smuggling is primarily treated as a violation of immigration law, trafficking is recognized as a crime against the individual and therefore demands a victim-centred response.

Legal scholars have emphasized that trafficking should be understood not merely as a discrete act but as a process that unfolds over time. The process may begin with recruitment in a vulnerable community, followed by transportation to another location, and culminate in exploitative conditions where the victim's freedom is restricted. Each stage of this process may involve different actors and forms of coercion, making trafficking a particularly complex offence to investigate and prosecute.

In essence, the contemporary definition of trafficking reflects an evolving understanding of exploitation within both legal and human rights frameworks. By recognizing the multiple stages, methods, and objectives involved in trafficking, modern legal definitions aim to capture the complexity of the phenomenon and provide a foundation for more effective legal and policy responses.

2.3 Historical Evolution of Human Trafficking

[3] United Nations Office on Drugs and Crime, *Global Report on Trafficking in Persons* (2022).

The exploitation of vulnerable individuals for economic or social gain is not a phenomenon limited to modern societies. Historical records across different civilizations reveal systems of labour control and human exploitation that bear resemblance to contemporary trafficking practices. Although the terminology of "human trafficking" emerged relatively recently within international legal discourse, the underlying dynamics of coercion, control, and exploitation have existed for centuries in various institutional forms.

In earlier historical periods, the most visible manifestation of such exploitation was slavery. Individuals could be treated as property and were frequently bought, sold, or transferred as commodities within social and economic systems that legally sanctioned their subordination. Over time, growing moral, political, and humanitarian movements led to the abolition of formal slavery in many parts of the world during the nineteenth century. However, the elimination of legally recognized slavery did not eradicate exploitative labour practices. Instead, exploitative systems adapted to new economic arrangements that often concealed coercion behind contractual or informal labour relationships[4].

During the colonial period, systems of labour recruitment frequently relied on practices that blurred the line between voluntary migration and coercive labour exploitation. In several colonial economies, labour shortages led to the recruitment of workers from economically disadvantaged regions. Although these arrangements were often presented as voluntary employment contracts, many workers experienced severe restrictions on mobility, harsh

[4] Kevin Bales, *Disposable People: New Slavery in the Global Economy* (University of California Press 2012).

working conditions, and dependency on employers. Such circumstances created environments where exploitation could occur despite the absence of formal ownership of labourers.

Within India, historical patterns of social hierarchy and economic marginalization contributed to conditions that facilitated exploitation. Systems of bonded labour and hereditary occupational structures often tied marginalized communities to exploitative labour arrangements that limited their economic mobility. While these practices were not always conceptualized as trafficking in legal terminology, they involved mechanisms of control and dependency that resemble contemporary trafficking dynamics[5].

Following independence, the Indian constitutional framework sought to address such exploitative practices through explicit legal safeguards. Article 23 of the Constitution prohibits trafficking in human beings and forced labour, reflecting a commitment to protecting individuals from practices that undermine human dignity. This constitutional provision established an important normative foundation for subsequent legislative efforts aimed at combating exploitation.

In the decades that followed, legislative responses to trafficking tended to focus on specific manifestations of exploitation rather than the broader trafficking process. For example, the **Immoral Traffic (Prevention) Act, 1956** was primarily designed to regulate activities associated with prostitution and to penalize exploitation within the sex trade. Although the legislation represented an early attempt to address certain aspects of

[5] Kamala Sankaran, *Labour Laws in India* (Oxford University Press 2017).

trafficking, its scope remained limited because it did not fully account for the diverse forms of exploitation that trafficking may involve.

International developments during the late twentieth century significantly influenced the evolution of anti-trafficking law. Increasing globalization, migration, and transnational criminal activity brought greater attention to trafficking as a global problem requiring coordinated international action. This recognition culminated in the adoption of the **United Nations Protocol to Prevent, Suppress and Punish Trafficking in Persons (2000)**, which introduced a comprehensive framework for addressing trafficking through prevention, criminalization, and victim protection measures[6].

In response to these international developments, India undertook legislative reforms aimed at strengthening its anti-trafficking framework. The **Criminal Law (Amendment) Act, 2013** introduced a revised definition of trafficking under Section 370 of the Indian Penal Code. This amendment broadened the legal understanding of trafficking by recognizing multiple forms of exploitation and by focusing on the entire process through which individuals are recruited, transported, and exploited.

Despite these legal developments, historical patterns of inequality continue to influence contemporary trafficking practices. Socio-economic disparities, gender-based discrimination, and migration pressures create environments where traffickers can recruit vulnerable individuals. Consequently, addressing trafficking requires not only legal enforcement but also broader efforts to reduce structural inequalities that enable exploitation.

[6] Protocol to Prevent, Suppress and Punish Trafficking in Persons, Especially Women and Children (2000).

2.4 Forms of Trafficking Affecting Women and Children

Human trafficking manifests in multiple forms depending on the nature of exploitation involved. Although public discourse frequently associates trafficking with sexual exploitation, empirical research demonstrates that trafficked persons are exploited in a wide range of economic and social contexts. Recognizing these diverse forms is essential for designing legal frameworks capable of addressing the full scope of trafficking activities.

2.4.1 Trafficking for Sexual Exploitation

Sexual exploitation remains one of the most visible forms of trafficking, particularly affecting women and girls. In such cases, traffickers often recruit victims through deception, promising employment opportunities, marriage, or educational prospects. Once victims are transported away from their communities, they may be forced into prostitution or other forms of sexual exploitation through violence, intimidation, or debt bondage.

The consequences of sexual exploitation extend beyond immediate physical harm. Victims often experience long-term psychological trauma, health risks, and social stigma that may hinder reintegration into society. The persistence of demand for commercial sexual services combined with economic vulnerabilities among marginalized populations contributes to the continued prevalence of this form of trafficking[7].

2.4.2 Labour Exploitation

[7] Siddharth Kara, *Sex Trafficking: Inside the Business of Modern Slavery* (Columbia University Press 2009).

Trafficking also occurs in labour markets where vulnerable individuals are compelled to work under coercive conditions. Victims may be exploited in industries such as agriculture, construction, manufacturing, domestic service, or small-scale informal enterprises. In many cases, trafficked workers receive little or no compensation and are subjected to excessive working hours or hazardous conditions.

Labour trafficking frequently involves mechanisms such as debt bondage, where workers are required to repay inflated recruitment costs or fabricated debts. These debts create a cycle of dependency that effectively prevents victims from leaving exploitative employment arrangements.

2.4.3 Child Trafficking

Children are particularly vulnerable to trafficking because they depend on adults for protection and decision-making. Child trafficking may occur for purposes such as forced labour, sexual exploitation, illegal adoption, begging networks, or involvement in illicit activities.

International law recognizes the heightened vulnerability of children by establishing that consent is irrelevant in cases of child trafficking. Even where children appear to agree to certain activities, such consent cannot be considered legally valid because children lack the capacity to fully understand the risks associated with exploitation[8].

2.4.4 Trafficking for Forced Marriage

In certain circumstances, women and girls may be trafficked for the purpose of forced marriage. This practice often occurs in regions where gender

[8] Convention on the Rights of the Child (1989).

imbalances, poverty, or cultural norms create demand for brides. Victims may be transported across regions or borders and compelled to enter marriages without their genuine consent.

Forced marriage trafficking raises complex legal and social concerns because it combines elements of trafficking, gender-based violence, and domestic exploitation. Victims may face isolation and limited access to legal assistance once placed within private household environments.

2.4.5 Organ Trafficking

Another emerging form of trafficking involves the illegal trade in human organs. Individuals experiencing severe economic hardship may be deceived or pressured into selling organs such as kidneys under exploitative conditions. In many cases, the financial compensation promised to victims is significantly lower than the profits obtained by intermediaries involved in organ trade networks.

Organ trafficking illustrates how trafficking can intersect with sophisticated transnational criminal operations involving brokers, medical professionals, and illicit markets.

2.5 Structural Causes and Drivers of Trafficking

Human trafficking is sustained by a combination of economic, social, and institutional factors that create conditions of vulnerability. Understanding these underlying drivers is crucial for developing strategies that address the root causes of trafficking rather than merely responding to its consequences.

2.5.1 Economic Vulnerability

Poverty remains one of the most significant factors contributing to trafficking. Individuals living in economically marginalized conditions may be more willing to accept risky employment or migration opportunities that promise financial improvement. Traffickers exploit this vulnerability by presenting deceptive offers that conceal exploitative intentions[9].

2.5.2 Gender-Based Inequality

Gender discrimination plays a substantial role in increasing the vulnerability of women and girls to trafficking. Limited access to education, employment opportunities, and property rights may restrict women's economic independence. In some communities, patriarchal norms further reduce women's autonomy, making them more susceptible to manipulation by traffickers.

2.5.3 Educational Disadvantage

Lack of education can limit awareness of trafficking risks and reduce individuals' ability to evaluate employment or migration opportunities critically. Education therefore plays an important preventive role by equipping individuals with the knowledge and skills needed to recognize deceptive recruitment practices.

2.5.4 Migration Pressures

Migration in search of employment often involves reliance on intermediaries who facilitate travel and job placement. When migration occurs through

[9] Louise Shelley, *Human Trafficking: A Global Perspective* (Cambridge University Press 2010).

informal or irregular channels, migrants may become dependent on these intermediaries, creating opportunities for exploitation.

2.5.5 Organized Criminal Networks

Trafficking frequently involves organized criminal groups that coordinate recruitment, transportation, and exploitation activities. These networks benefit from the profitability of trafficking combined with relatively low risks of detection in regions where law enforcement capacity is limited.

2.6 Patterns of Trafficking in India

Trafficking in India reflects complex migration patterns shaped by economic disparities, demographic factors, and regional inequalities. The country simultaneously functions as a place of origin, transit, and destination for trafficked persons.

Many victims originate from economically disadvantaged rural areas where employment opportunities are limited. Recruitment frequently occurs through informal networks or intermediaries who promise employment in urban centres. Once transported to destination areas, victims may be exploited in sectors such as domestic service, small-scale manufacturing, construction, or commercial sexual exploitation.

Urban centres often function as major destinations for trafficked persons due to the availability of labour markets that operate largely within the informal economy. Weak labour regulation and limited oversight create environments where exploitative employment arrangements can remain hidden.

Cross-border trafficking also occurs between India and neighbouring countries, particularly Nepal and Bangladesh. Geographic proximity and porous borders facilitate the movement of trafficked persons, while economic disparities between regions create incentives for migration.

Trafficking patterns may also intensify in situations involving natural disasters, conflict, or displacement. Communities affected by such events may experience increased vulnerability because individuals face urgent economic pressures and diminished access to institutional support mechanisms[10].

Recognizing these patterns is essential for developing effective prevention and intervention strategies. Coordinated efforts involving law enforcement agencies, social welfare institutions, and civil society organizations are necessary to identify high-risk areas, disrupt trafficking networks, and provide assistance to vulnerable populations.

2.7 Consequences of Trafficking for Women and Children

Trafficking produces consequences that extend well beyond the period of exploitation. The harm experienced by victims frequently continues long after they leave trafficking environments, affecting their health, psychological well-being, social relationships, and economic prospects. Women and children face particularly severe consequences because the exploitation they experience often interacts with pre-existing social inequalities related to gender, age, and economic status.

[10] United Nations Office on Drugs and Crime, *Global Report on Trafficking in Persons* (2022).

One of the most immediate effects of trafficking involves **serious threats to physical health and bodily integrity**. Individuals who are trafficked frequently endure hazardous working conditions, physical violence, inadequate nutrition, and absence of medical care. In situations involving sexual exploitation, women and girls may be subjected to repeated abuse, reproductive health complications, and exposure to sexually transmitted diseases. Forced labour trafficking can also involve unsafe workplaces where victims perform demanding tasks without protective equipment or adequate rest. Such conditions may result in chronic health problems that persist even after victims escape exploitation.[1]

In addition to physical harm, trafficking often produces **deep psychological and emotional trauma**. Victims typically experience prolonged exposure to coercion, intimidation, and loss of autonomy, which may lead to anxiety disorders, depression, and post-traumatic stress symptoms. For children, these psychological consequences can be particularly severe because trafficking disrupts their emotional development and sense of security. When exploitation occurs during formative stages of life, the resulting trauma may influence cognitive development, relationships, and long-term mental health.[2]

The aftermath of trafficking frequently involves **social marginalization**. Survivors returning to their communities may encounter suspicion, stigma, or exclusion, particularly in cases where exploitation occurred in the sex trade. Cultural attitudes surrounding morality and honour may lead communities to blame victims rather than the traffickers responsible for their exploitation. This social rejection can make reintegration extremely difficult

and may discourage survivors from reporting crimes or seeking support services.

Economic vulnerability also plays a significant role in shaping the experiences of trafficking survivors. Many individuals return from trafficking situations without financial resources, employment opportunities, or access to education. Without sustainable livelihood options, survivors may remain trapped in cycles of poverty that initially contributed to their vulnerability. In some cases, the absence of long-term rehabilitation programs increases the risk that survivors will be re-trafficked or forced into other exploitative work.[3]

Children who experience trafficking face additional disadvantages because exploitation often interrupts their education and limits opportunities for personal development. When children are removed from school and compelled to work or engage in exploitative activities, their prospects for future employment and social mobility are significantly reduced. This interruption in education can perpetuate intergenerational poverty, thereby reinforcing the structural conditions that enable trafficking to occur.

Trafficking also has wider implications for society as a whole. The existence of organized trafficking networks undermines the rule of law and weakens institutional trust in law enforcement agencies. In many cases, trafficking networks operate in conjunction with other forms of criminal activity, including corruption, document forgery, and illicit financial transactions. These connections illustrate that trafficking should be viewed not only as a human rights violation but also as a threat to governance and social stability.

Addressing the impact of trafficking therefore requires a comprehensive approach that goes beyond criminal prosecution. Effective responses must include medical care, psychological support, education, and economic rehabilitation for survivors. A victim-centred framework that prioritizes dignity, autonomy, and long-term reintegration is essential if survivors are to rebuild their lives and avoid further exploitation.

2.8 Technology and the Changing Dynamics of Trafficking

Advancements in communication technology have significantly transformed the operational methods of trafficking networks. Digital platforms have created new opportunities for traffickers to identify potential victims, coordinate activities across geographical boundaries, and conceal exploitative practices from authorities. As a result, the relationship between technology and trafficking has become an increasingly important area of study within both criminology and human rights research.

One of the most notable developments involves the use of **online platforms for recruitment**. Traffickers frequently use social networking websites, online job portals, and messaging applications to approach potential victims. These platforms allow traffickers to present fraudulent employment opportunities, modelling offers, or marriage proposals that appear legitimate to individuals seeking economic advancement. Because online communication often occurs without face-to-face interaction, traffickers can easily conceal their identities and intentions.[4]

Digital technology also enables traffickers to **manage complex networks of recruitment and transportation**. Encrypted messaging services and online

payment systems allow traffickers to communicate with associates and transfer funds with reduced risk of detection. These technological tools facilitate coordination among multiple actors who may operate in different regions or countries, making trafficking networks more difficult for authorities to dismantle.

Another emerging concern relates to the **use of digital platforms to advertise exploitative services**. In cases involving sexual exploitation, traffickers may promote services through websites or online marketplaces that disguise illegal activities under the appearance of legitimate businesses. Such platforms create virtual spaces where exploitation can be organized with minimal direct contact between traffickers and clients.

Children face unique risks in the digital environment because they may be targeted through **online grooming and manipulation**. Traffickers may establish relationships with minors through gaming platforms, social media, or chat applications before persuading them to share personal information or images. These interactions can later be used to coerce children into exploitative situations or to facilitate trafficking.

Despite these risks, technological innovation also offers tools that can assist in **combating trafficking**. Law enforcement agencies increasingly rely on digital forensic techniques, data analysis, and online monitoring to detect suspicious patterns associated with trafficking activities. Similarly, non-governmental organizations use technology to identify victims, provide confidential reporting mechanisms, and coordinate rescue operations.

Public awareness initiatives delivered through digital platforms also play an important preventive role. Educational campaigns that highlight the risks of

deceptive recruitment practices can help individuals recognize warning signs and avoid potentially dangerous situations. In addition, digital literacy programs may equip vulnerable communities with the knowledge needed to navigate online spaces safely.

The relationship between technology and trafficking therefore reflects a dual reality. While technological tools have expanded the capabilities of traffickers, they also provide opportunities for more effective detection, prevention, and victim support. Addressing this evolving challenge requires cooperation among governments, technology companies, and civil society organizations to ensure that digital platforms are not misused for exploitative purposes.

Conclusion

Several points emerging from this chapter deserve emphasis as the research moves to its examination of India's legal and judicial response. First, the diversity of trafficking's forms — sexual exploitation, forced labour, bonded servitude, child trafficking, coerced marriage, forced beggary, organ trafficking — means that a legal framework capable of addressing only one or two of these forms will leave substantial exploitation untouched. The BNS's Section 143, through its Explanation 1, attempts definitional comprehensiveness by enumerating beggary and forced organ removal alongside sexual exploitation and slavery. This is an improvement over the IPC's narrower formulation, but its value depends entirely on whether investigators are trained to recognise these forms of exploitation and whether prosecutors are willing to invoke Section 143 in their respect. The

law has expanded its definitional reach; whether enforcement has followed is the question that subsequent chapters address.

Second, the structural drivers of trafficking — poverty, gender inequality, educational disadvantage, unregulated migration, and organised criminality — cannot be addressed by criminal law alone. Section 111's organised crime framework opens new enforcement possibilities against trafficking syndicates, including the use of forfeiture powers that can disrupt the financial basis of trafficking networks. Whether investigators and prosecutors will deploy these tools effectively against trafficking, rather than limiting their use to drug or extortion cases, is a question of institutional priority rather than legal capacity.

Third, technology has fundamentally altered the operational environment of trafficking in ways that the BNS does not specifically address beyond the general digital offence provisions of the code. Recruitment, coordination, and commercial exploitation now occur across digital channels that existing trafficking-specific provisions were not designed to regulate. A dedicated regulatory response — extending beyond the BNS to include platform liability frameworks and proactive monitoring obligations — remains an unmet legislative need that the pending comprehensive trafficking legislation should address.

CHAPTER 3

LEGAL FRAMEWORK: DOMESTIC LEGISLATION AND INTERNATIONAL OBLIGATIONS

3.1 Introduction

India's legal response to human trafficking has not been designed as a coherent system; it has accumulated over decades. The result is a statutory landscape that is broad in its geographic reach, varied in its ambitions, and fragmented in its operation. Understanding this landscape requires examining not only what individual statutes say but how they relate to one another — and how the gaps between them are exploited by trafficking networks.

A transformation of foundational significance occurred on July 1, 2024, when the Bharatiya Nyaya Sanhita, 2023 replaced the Indian Penal Code, 1860, as India's primary criminal code. The trafficking provisions formerly located in IPC Sections 370 and 370A are now governed by BNS Sections 143 and 144 respectively. The transition is not merely a renumbering exercise. Section 143 of the BNS introduces substantive changes of direct relevance to trafficking law: the addition of beggary to the definition of exploitation under Explanation 1; the explicit declaration in Explanation 2 that victim consent is immaterial; a graduated sentencing structure across seven sub-sections that imposes progressively more severe penalties depending on the number of victims, the age of victims, and whether a public servant is involved; and a maximum of natural life imprisonment in cases involving public servant or police complicity, or habitual offending

against children. Section 143(1) prescribes seven to ten years' rigorous imprisonment for the basic offence. Section 143(2) escalates this to ten years to life for trafficking of more than one person. Sections 143(3) and (4) impose ten years to life and fourteen years to life respectively for trafficking involving one child and more than one child. Section 143(5) mandates natural life for repeat child trafficking offenders, and Section 143(7) does the same for public servants and police officers found complicit in the offence.

Section 144 of the BNS addresses the exploitation of trafficked persons separately from the act of trafficking itself. Sub-section (1) punishes the sexual exploitation of a trafficked minor with imprisonment of not less than five years extendable to life, while Sub-section (2) prescribes three to seven years for the sexual exploitation of a trafficked adult. This graduated distinction between adult and minor victims reflects the legislature's recognition of children's heightened vulnerability and reinforces the protective framework established under POCSO.

Beyond Sections 143 and 144, Chapter V of the BNS contains several provisions of direct relevance to trafficking of children. Section 95 creates a new offence — absent from the IPC — of hiring or employing a child to commit an offence, punishable with rigorous imprisonment which may extend to three years and a fine. This provision is particularly significant in the trafficking context because networks frequently use minors as instruments of recruitment or coercion. Section 96, replacing IPC Section 366A, criminalises the procuration of any child — extending the earlier provision's scope beyond minor girls to all children regardless of gender — and prescribes imprisonment up to ten years and a fine. Sections 98 and 99,

replacing IPC Sections 372 and 373, criminalise the selling and buying of children for the purpose of prostitution respectively, each carrying a punishment of not less than seven years extendable to fourteen years, with an additional presumption under Section 99 that a brothel keeper who acquires custody of a female under eighteen years of age is presumed to have done so for the purpose of prostitution unless the contrary is proved.

Section 111 of the BNS introduces the offence of organised crime, which explicitly enumerates human trafficking for prostitution or ransom as one of the activities that constitute organised criminal activity when conducted by a syndicate as a continuing unlawful activity for material benefit. The provision carries the death penalty or life imprisonment where the organised crime results in death, and rigorous imprisonment of not less than five years extendable to life in other cases. Crucially, Section 111 also enables courts to order forfeiture of property derived from or used in the commission of organised crime — a tool entirely absent from the IPC framework that directly addresses the financial infrastructure which makes trafficking networks viable.

The constitutional framework that undergirds all of these statutory provisions remains unchanged by the BNS. Article 23 of the Constitution prohibits trafficking in human beings, begar, and other forms of forced labour. Article 24 prohibits employment of children below fourteen years in hazardous occupations. These provisions impose justiciable obligations on both the state and private actors, and they have generated substantial Supreme Court jurisprudence directing executive action on trafficking. The BNS's criminal provisions operate within this constitutional frame, and the two must be read together.

Despite these improvements, the BNS does not resolve the fundamental fragmentation of India's anti-trafficking legal landscape. The Immoral Traffic (Prevention) Act, 1956 remains in force and continues to govern activities connected with prostitution. The POCSO Act, 2012 and the Juvenile Justice Act, 2015 continue to address child-specific forms of exploitation under separate statutory frameworks. The Bonded Labour System (Abolition) Act, 1976 governs labour-related trafficking under yet another institutional regime. In cases involving trafficking for sexual exploitation of a minor, prosecutors may simultaneously invoke BNS Sections 143, 144, and 98 or 99 alongside POCSO and JJ Act provisions — creating the same jurisdictional complexity that critics identified under the IPC framework. The comprehensive anti-trafficking statute that India still lacks would need to rationalise this multiplicity of applicable provisions and assign clear institutional responsibility across the chain of investigation, prosecution, protection, and rehabilitation.

3.2 Constitutional Provisions Relating to Trafficking

The Constitution of India establishes a strong commitment to safeguarding individuals from exploitation and abuse. Within the constitutional framework, the protection of human dignity and personal liberty occupies a central position. Several constitutional provisions are directly relevant to the issue of trafficking, particularly Articles 23 and 24, which explicitly prohibit practices associated with exploitation.

3.2.1 Article 23: Prohibition of Trafficking and Forced Labour

Article 23 declares that trafficking in human beings, begar, and other forms of forced labour are prohibited within the territory of India. This provision reflects the recognition that exploitation of human labour and liberty is incompatible with the principles of equality and dignity that underpin the constitutional order. Importantly, the scope of Article 23 extends beyond actions performed by the state and also applies to exploitation carried out by private individuals[11].

The inclusion of trafficking and forced labour within the list of prohibited practices demonstrates the constitutional commitment to eliminating forms of exploitation historically associated with social and economic inequality. The framers of the Constitution were aware that vulnerable populations, particularly those affected by poverty and marginalization, could be subjected to coercive labour practices. By establishing an explicit prohibition, Article 23 seeks to protect individuals from such abuses.

Judicial interpretation has played an important role in defining the practical scope of Article 23. In **People's Union for Democratic Rights v. Union of India**, the Supreme Court examined whether the payment of wages below the statutory minimum could amount to forced labour[12]. The Court concluded that when individuals are compelled to work for inadequate wages due to economic necessity, such circumstances may constitute a form of coercion. This interpretation expanded the meaning of forced labour to include situations where economic vulnerability effectively deprives individuals of meaningful choice.

[11] Constitution of India 1950, art 23.
[12] People's Union for Democratic Rights v Union of India AIR 1982 SC 1473.

Another important judicial intervention occurred in **Bandhua Mukti Morcha v. Union of India**, where the Supreme Court considered the plight of bonded labourers employed in quarry operations[13]. The Court recognized bonded labour as a direct violation of Article 23 and emphasized the responsibility of the state to identify and rehabilitate individuals subjected to such exploitation. The decision underscored the principle that constitutional protections must be actively enforced rather than treated as merely symbolic guarantees.

Through these interpretations, the judiciary has broadened the scope of Article 23 to address modern forms of exploitation that may not involve overt physical coercion. The recognition that economic vulnerability can function as a form of compulsion reflects a more realistic understanding of the conditions that enable trafficking and forced labour to occur.

3.2.2 Article 24: Protection of Children from Exploitative Labour

Article 24 complements the prohibition of trafficking by addressing the exploitation of children in hazardous occupations. The provision prohibits the employment of children below the age of fourteen in factories, mines, or other dangerous forms of work. This constitutional safeguard reflects an understanding that children require special protection due to their limited capacity to defend their interests or resist exploitation.

Child trafficking frequently involves the recruitment of minors for labour in hazardous environments or exploitative industries. By restricting the employment of children in such conditions, Article 24 aims to reduce one of the pathways through which trafficking may occur. The constitutional

[13] *Bandhua Mukti Morcha v Union of India* AIR 1984 SC 802.

protection also reinforces the broader principle that childhood should be a period devoted to education and development rather than economic exploitation.

Judicial decisions have further emphasized the significance of Article 24 in protecting children from exploitative labour practices. In **M.C. Mehta v. State of Tamil Nadu**, the Supreme Court addressed the issue of child labour in hazardous industries and directed authorities to implement measures designed to eliminate such practices while ensuring educational opportunities for affected children[14]. The judgment highlighted the importance of combining legal prohibition with social welfare initiatives aimed at addressing the root causes of child labour.

3.2.3 Article 21 and the Protection of Human Dignity

Although Articles 23 and 24 specifically address exploitation, the broader constitutional guarantee of the **right to life and personal liberty under Article 21** also plays an important role in anti-trafficking jurisprudence. Over time, the Supreme Court has interpreted Article 21 expansively to include the right to live with dignity and freedom from degrading treatment.

Trafficking fundamentally violates the principle of dignity because it reduces individuals to objects of exploitation and denies them control over their lives. By linking anti-trafficking protections with the right to dignity, the constitutional framework strengthens the legal basis for protecting victims and ensuring accountability for perpetrators.

3.2.4 Directive Principles of State Policy

[14] M.C. Mehta v State of Tamil Nadu (1996) 6 SCC 756.

The Directive Principles of State Policy also contribute to the constitutional framework addressing trafficking. Articles such as **Article 39(e)** and **Article 39(f)** encourage the state to protect the health and strength of workers, men, women, and children from abuse and to ensure that children develop in conditions of freedom and dignity. Although these principles are not enforceable in courts, they provide important guidance for legislative and policy initiatives aimed at preventing exploitation.

Together, the constitutional provisions addressing trafficking establish a comprehensive normative framework that emphasizes both individual rights and social responsibility. By prohibiting exploitative practices and encouraging policies that protect vulnerable populations, the Constitution lays the foundation for statutory laws designed to combat trafficking and provide assistance to victims.

3.3 Immoral Traffic (Prevention) Act, 1956

One of the earliest legislative measures adopted in India to address activities associated with human trafficking is the **Immoral Traffic (Prevention) Act, 1956 (ITPA)**. The law originally emerged as the **Suppression of Immoral Traffic in Women and Girls Act, 1956 (SITA)** and was enacted in response to India's commitment under the **International Convention for the Suppression of Traffic in Persons and of the Exploitation of the Prostitution of Others, 1949**. Subsequent amendments, particularly the changes introduced in 1986, modified the name of the legislation and

expanded its provisions in an attempt to strengthen the legal response to sexual exploitation[15].

The enactment of this legislation represented an early recognition by the Indian state that organized prostitution and the trafficking of women and girls were closely interconnected social problems. Rather than targeting prostitution itself as a moral offence, the statute sought to identify and penalize individuals who profit from the exploitation of others. In doing so, the law attempted to disrupt the networks that recruit, transport, and control victims within the commercial sex industry.

Although the Act predates modern international definitions of trafficking, its provisions address several activities that are commonly associated with trafficking for sexual exploitation. By criminalizing the management of brothels, recruitment of individuals for prostitution, and financial exploitation of victims, the statute seeks to weaken the economic foundations that sustain such practices.

3.3.1 Legislative Purpose and Scope

The central aim of the Immoral Traffic (Prevention) Act is to prevent the exploitation of individuals through organized prostitution. The legislation does not declare prostitution itself to be illegal; rather, it focuses on the exploitation that arises when third parties profit from the sexual labour of others. In this sense, the Act attempts to distinguish between voluntary sex work and circumstances where individuals are coerced, deceived, or trafficked into prostitution.

[15] Immoral Traffic (Prevention) Act 1956.

The statute therefore concentrates on criminalizing intermediaries who play an active role in the trafficking process. These intermediaries may include recruiters, brothel managers, transporters, or individuals who financially benefit from prostitution conducted by others. By penalizing these actors, the law aims to dismantle organized structures that facilitate exploitation.

However, the Act also reflects the social attitudes prevalent at the time of its enactment. Much of its framework is oriented toward regulating prostitution-related activities rather than addressing trafficking in a broader sense. As trafficking has increasingly been recognized as a multidimensional phenomenon affecting various sectors of the economy, this narrow focus has generated debate about the continuing adequacy of the legislation.

3.3.2 Key Offences Recognized under the Act

The Immoral Traffic (Prevention) Act contains several provisions designed to address different aspects of exploitation connected to prostitution. These provisions collectively attempt to target both the locations and the individuals involved in trafficking networks.

(a) Maintenance of Brothels

Section 3 of the Act criminalizes the operation or management of premises used as brothels. Individuals who maintain, manage, or knowingly permit the use of property for prostitution may be subject to imprisonment and financial penalties. This provision reflects the legislative intention to eliminate establishments that function as centres of organized exploitation.

(b) Financial Dependence on Prostitution

Section 4 addresses the issue of individuals who live wholly or partially on the income generated through prostitution of another person. The law recognizes that trafficking networks often involve intermediaries who derive financial benefit without directly participating in prostitution. By penalizing those who profit from the earnings of others, the provision aims to weaken the economic incentives that sustain trafficking operations.

(c) Recruitment and Procurement for Prostitution

Section 5 criminalizes the recruitment, inducement, or transportation of individuals for the purpose of prostitution. This provision is particularly significant because it directly addresses the recruitment stage of trafficking. Enhanced penalties apply where the victim is a minor, reflecting the law's recognition of the heightened vulnerability of children.

(d) Detention in Brothels or Exploitative Premises

Section 6 prohibits the detention of individuals in premises where prostitution takes place. Trafficked persons are often confined through intimidation, physical violence, or threats of retaliation. By criminalizing detention in such circumstances, the Act acknowledges that victims frequently lack the freedom to leave exploitative environments.

(e) Regulation of Prostitution near Public Places

Section 7 restricts prostitution in the vicinity of certain public institutions such as schools, temples, and hospitals. This provision reflects concerns related to public order and community welfare, although it has also been criticized for potentially affecting individuals engaged in prostitution rather than focusing solely on traffickers.

3.3.3 Rescue and Protective Measures

In addition to creating criminal offences, the Act contains provisions aimed at rescuing individuals from exploitative environments. Authorities are empowered to conduct raids on premises suspected of being used for prostitution and to remove individuals believed to be victims of exploitation. Once rescued, victims may be placed in protective institutions where they receive medical assistance, counselling, and vocational training.

The inclusion of such provisions demonstrates an early attempt to incorporate rehabilitation within the legal response to trafficking. However, the effectiveness of these mechanisms has often depended on the availability of adequate infrastructure and trained personnel. In many instances, protective homes have faced criticism due to overcrowding, insufficient funding, and lack of long-term rehabilitation strategies.

3.3.4 Limitations of the Legislative Framework

Although the Immoral Traffic (Prevention) Act represents an important milestone in India's anti-trafficking efforts, it has also been subject to significant criticism. One of the most frequently identified limitations is the law's narrow focus on prostitution-related exploitation. Contemporary understandings of trafficking recognize that exploitation may occur in various contexts including forced labour, domestic servitude, agricultural work, and informal industries. The Act does not adequately address these broader forms of trafficking.

Another concern relates to the treatment of individuals involved in prostitution. Certain provisions may result in the arrest or harassment of sex workers rather than targeting traffickers and exploiters. Critics argue that

such measures may discourage victims from approaching authorities for assistance and may contribute to further marginalization of already vulnerable groups.

Furthermore, enforcement of the Act has often been inconsistent due to institutional constraints such as inadequate training of law enforcement personnel and limited coordination among agencies responsible for combating trafficking. These challenges highlight the need for a more comprehensive legislative framework that addresses trafficking in all its forms.

3.3.5 Judicial Engagement with the Act

Indian courts have played an important role in interpreting the provisions of the Immoral Traffic (Prevention) Act and in emphasizing the importance of protecting victims of exploitation. In **Vishal Jeet v. Union of India**, the Supreme Court recognized the widespread nature of trafficking and directed authorities to adopt measures aimed at preventing the exploitation of women and children in prostitution[16].

Similarly, in **Gaurav Jain v. Union of India**, the Court emphasized the importance of rehabilitation programs designed to integrate victims of prostitution into mainstream society[17]. The decision highlighted the need for education, vocational training, and social support to ensure that survivors are able to rebuild their lives after exploitation.

These judicial interventions demonstrate that the effectiveness of anti-trafficking legislation often depends not only on statutory provisions but also

[16] Vishal Jeet v Union of India (1990) 3 SCC 318.
[17] Gaurav Jain v Union of India (1997) 8 SCC 114

on the willingness of courts to interpret the law in a manner that prioritizes victim protection and rehabilitation.

3.4 Indian Penal Code Provisions on Trafficking

Although earlier legislative efforts in India attempted to address certain forms of exploitation, the **Indian Penal Code (IPC)** remains the central criminal law instrument through which trafficking offences are prosecuted. Historically, trafficking-related conduct was addressed through a combination of provisions dealing with kidnapping, abduction, procurement of minors, and forced labour. However, these scattered provisions were insufficient to address the complex nature of trafficking networks, which often involve organized recruitment, transportation, and exploitation across multiple locations.

Recognizing these shortcomings, the Indian legislature introduced significant reforms through the **Criminal Law (Amendment) Act, 2013**. These reforms replaced the earlier limited definition of trafficking and introduced a more detailed framework under **Sections 370 and 370A of the IPC**. The amended provisions reflect an evolving legal understanding that trafficking involves a chain of activities rather than a single criminal act. They also align Indian criminal law more closely with international standards concerning trafficking in persons[18].

By incorporating trafficking-specific offences within the Penal Code, the legislature sought to strengthen the capacity of law enforcement authorities

[18] Criminal Law (Amendment) Act 2013.

to investigate and prosecute organized trafficking operations. The amendments also emphasize the protection of vulnerable groups, particularly women and children, who are disproportionately affected by trafficking.

3.4.1 Section 370: Legal Definition of Trafficking

Section 370 of the IPC establishes a comprehensive legal definition of trafficking in persons. The provision recognizes trafficking as a process that may include recruitment, transportation, transfer, harbouring, or receipt of individuals for the purpose of exploitation. By addressing each stage of this process, the law acknowledges that trafficking networks typically involve multiple actors performing different roles within an organized system of exploitation.

The provision further identifies several methods through which traffickers exercise control over victims. These include the use of threats, physical force, deception, abuse of authority, and exploitation of a person's vulnerability. The inclusion of these methods reflects an understanding that trafficking frequently relies on manipulation and coercion rather than overt physical violence. Victims may initially agree to travel or work under false promises but later find themselves trapped in exploitative circumstances once traffickers gain control over them.

A key feature of Section 370 is its emphasis on **exploitation as the central objective of trafficking**. The law recognizes a range of exploitative outcomes, including forced labour, slavery, servitude, and sexual exploitation. This broad definition acknowledges that trafficking is not confined to the commercial sex industry but may occur in numerous sectors such as domestic labour, agriculture, construction, and informal industries.

The provision also clarifies that **the apparent consent of the victim does not constitute a valid defence** when the trafficker has used coercion, deception, or abuse of power. This principle reflects the recognition that many victims agree to travel or work under circumstances where their choices are shaped by economic desperation or misinformation. In such situations, the law treats consent as legally irrelevant because the decision was obtained through manipulation or abuse.

3.4.2 Enhanced Punishments for Aggravated Offences

Section 370 establishes different levels of punishment depending on the seriousness of the offence. Trafficking involving multiple victims, organized criminal groups, or repeated offences attracts more severe penalties. The law also provides enhanced punishment where the offence involves public officials who misuse their authority to facilitate trafficking.

Particular emphasis is placed on the trafficking of children. The law treats the trafficking of minors as an aggravated offence because children are inherently more vulnerable and lack the capacity to provide informed consent. In such cases, the prosecution is not required to demonstrate the use of coercive methods because the mere act of recruiting or transporting a child for exploitation constitutes trafficking.

This approach reflects a broader commitment within Indian criminal law to prioritize the protection of children from exploitation and abuse.

3.4.3 Section 370A: Punishment for Exploiting Trafficked Persons

In addition to penalizing the trafficking process itself, the legislature introduced **Section 370A** to address the exploitation of trafficked persons.

This provision targets individuals who knowingly use the services of trafficked persons for sexual exploitation or other exploitative purposes.

The inclusion of this provision represents an important shift in legislative strategy. Earlier legal approaches primarily focused on punishing traffickers while overlooking the role of individuals who create demand for trafficked labour or services. Section 370A recognizes that trafficking persists because exploitative markets continue to exist.

By criminalizing the use of trafficked persons, the law attempts to address the **demand-side dynamics** of trafficking. This approach reflects a growing recognition within international legal frameworks that combating trafficking requires not only the prosecution of traffickers but also the regulation of markets that sustain exploitation.

3.4.4 Sale and Purchase of Minors under Sections 372 and 373

In addition to the provisions introduced in 2013, the IPC contains earlier sections designed to protect minors from exploitation. **Section 372** criminalizes the sale or disposal of a minor with the intention that the child will be used for prostitution or other immoral purposes. Similarly, **Section 373** penalizes individuals who purchase or obtain possession of a minor for such purposes.

These provisions recognize that trafficking of children often involves transactions in which minors are treated as commodities. The law therefore imposes liability not only on those who sell or transfer children but also on those who purchase them for exploitative purposes.

Although these sections were originally enacted in the context of prostitution-related offences, they have been interpreted broadly to address various forms of exploitation involving minors. Their continued relevance demonstrates the long-standing recognition within Indian criminal law that children require special protection from commercial exploitation.

3.4.5 Assessment of the Legislative Reforms

The reforms introduced through the Criminal Law (Amendment) Act, 2013 represent an important development in India's legal response to trafficking. By introducing a comprehensive definition of trafficking and addressing both the supply and demand sides of exploitation, the law provides a stronger foundation for prosecuting trafficking offences.

Nevertheless, the effectiveness of these provisions depends largely on their implementation. Investigations involving trafficking are often complex because they require coordination among multiple law enforcement agencies and may involve victims who have been transported across state or national borders. In addition, victims may be reluctant to cooperate with authorities due to fear, stigma, or lack of protection.

These challenges indicate that legal reform alone cannot eliminate trafficking. Effective enforcement must be supported by institutional capacity, victim protection mechanisms, and coordinated efforts among government agencies and civil society organizations. Only through such comprehensive measures can the objectives of the criminal law framework be fully realized.

3.5 Protection of Children from Sexual Offences Act, 2012 (POCSO)

The **Protection of Children from Sexual Offences Act, 2012 (POCSO)** constitutes a significant component of India's legal architecture designed to safeguard children from sexual exploitation and abuse. Although the statute was enacted primarily to address sexual offences against minors, its provisions frequently intersect with cases involving the trafficking of children. In many trafficking investigations, particularly those involving sexual exploitation, the offences defined under POCSO operate alongside other criminal laws to ensure a more comprehensive prosecution of perpetrators.

The enactment of the legislation reflected growing concern that existing criminal provisions were insufficient to address the specific vulnerabilities faced by children. Earlier legal mechanisms largely relied on general provisions of the Indian Penal Code that did not adequately differentiate between adult and child victims. As a result, the justice system often lacked procedural safeguards necessary to protect minors during the investigative and judicial process. The POCSO Act sought to remedy these deficiencies by introducing a specialized statutory framework focused exclusively on offences involving children[19].

A defining characteristic of the Act is its detailed categorization of sexual offences against minors. The legislation distinguishes between penetrative sexual assault, aggravated penetrative sexual assault, non-penetrative sexual

[19] Protection of Children from Sexual Offences Act 2012.

assault, and sexual harassment. This classification allows the law to capture a wide range of exploitative conduct that trafficked children may experience. By clearly defining these offences, the statute ensures that acts of exploitation cannot easily escape legal scrutiny due to ambiguity in existing legal provisions.

Another notable feature of the Act is its recognition that children may lack the capacity to meaningfully consent to sexual activity. The legal framework therefore treats consent differently when minors are involved. Instead of requiring proof that a child resisted or refused the act, the law presumes exploitation where sexual conduct with a minor is established. This approach acknowledges the power imbalance between adults and children and seeks to reduce the burden placed on child victims during criminal proceedings.

The Act also incorporates procedural mechanisms designed to make the justice process less intimidating for minors. Investigative authorities are required to record statements in environments that are comfortable for the child, and questioning must avoid aggressive or coercive methods. Special courts are designated to hear cases under the Act, and proceedings are conducted in a manner intended to preserve the dignity and privacy of victims.

Despite the progressive design of the legislation, practical implementation has encountered several obstacles. Inadequate training of investigators, delays in judicial proceedings, and insufficient support services for victims sometimes undermine the protective intentions of the statute. Additionally, the availability of specialized courts and child-friendly infrastructure remains uneven across different regions of the country. These challenges

illustrate that legal provisions alone cannot guarantee effective protection unless supported by adequate institutional capacity and coordinated implementation.

Nevertheless, the POCSO Act remains a crucial tool in addressing trafficking cases involving minors, as it ensures that sexual exploitation of children is prosecuted within a framework that prioritizes victim protection and sensitivity.

3.6 Juvenile Justice (Care and Protection of Children) Act, 2015

The **Juvenile Justice (Care and Protection of Children) Act, 2015** provides a welfare-oriented framework for protecting children who are vulnerable to abuse, neglect, or exploitation. Within the context of trafficking, this legislation plays an essential role because trafficked children are typically classified as **children in need of care and protection** under its provisions. This classification enables authorities to provide immediate assistance and ensures that such children are treated as victims rather than offenders.

The philosophy underlying the Juvenile Justice framework emphasizes rehabilitation rather than punishment. Recognizing that children who experience trafficking often suffer from severe psychological and social harm, the Act seeks to create institutional mechanisms capable of addressing their long-term needs. The legislation therefore combines legal protection with social welfare interventions designed to support recovery and reintegration.

A central institution established under the Act is the **Child Welfare Committee (CWC)**. These committees function as quasi-judicial bodies responsible for assessing the circumstances of children who have been rescued from exploitative environments. After examining the situation, the committee determines the most appropriate course of action for the child's care and protection. Possible outcomes may include placement in a child care institution, foster care arrangements, or supervised reintegration with family members.

The Act also places considerable emphasis on rehabilitation measures aimed at enabling trafficked children to rebuild their lives. These measures may include access to education, counselling services, and vocational training programs. Such interventions are intended to address the long-term consequences of exploitation and to reduce the likelihood that children will be re-trafficked due to economic vulnerability.

Despite the existence of this protective framework, several challenges affect the effectiveness of the Juvenile Justice system. Child care institutions in some regions face issues such as overcrowding, inadequate funding, and insufficiently trained staff. Additionally, coordination between law enforcement agencies and child protection authorities is sometimes weak, which can delay the provision of assistance to rescued children.

Nevertheless, the Juvenile Justice Act remains a vital component of India's response to child trafficking because it establishes a structured mechanism through which vulnerable children can receive protection, rehabilitation, and social support.

3.7 Bonded Labour System (Abolition) Act, 1976

The **Bonded Labour System (Abolition) Act, 1976** addresses another dimension of trafficking that arises within labour markets. Bonded labour refers to a system in which individuals are compelled to work to repay debts or obligations, often under conditions that severely restrict their freedom. Such arrangements frequently arise in environments marked by poverty, social inequality, and limited access to economic opportunities.

The Act formally abolishes the bonded labour system and declares all agreements creating such obligations to be legally invalid. It also extinguishes any debts associated with bonded labour arrangements, thereby removing the financial mechanisms that perpetuate exploitation. Through these measures, the legislation seeks to eliminate a practice historically used to control vulnerable workers.

In addition to declaring bonded labour unlawful, the statute imposes penalties on individuals who compel others to work under such conditions. Employers or intermediaries who maintain systems of debt-based labour exploitation may face criminal liability. The law also empowers authorities to identify bonded labourers and implement rehabilitation measures intended to support their economic independence.

Despite these legal prohibitions, bonded labour has not been entirely eliminated in practice. In certain sectors of the informal economy, exploitative labour relationships continue to occur, particularly among migrant workers and marginalized communities. Factors such as illiteracy, lack of awareness of legal rights, and fear of retaliation may prevent victims from seeking assistance.

These realities highlight the importance of strengthening enforcement mechanisms and improving awareness regarding labour rights. While the Bonded Labour System (Abolition) Act provides an important legal basis for combating labour-related exploitation, its effectiveness depends on sustained efforts by authorities to identify victims and dismantle exploitative labour arrangements.

3.8 International Legal Framework

Efforts to combat trafficking in India are also influenced by international legal norms that address trafficking as a global human rights concern. Because trafficking frequently involves cross-border networks and transnational criminal activity, international cooperation plays a crucial role in addressing the problem effectively. Several international conventions and protocols establish obligations for states to prevent trafficking, prosecute offenders, and provide assistance to victims.

One of the most influential international instruments is the **Protocol to Prevent, Suppress and Punish Trafficking in Persons, Especially Women and Children**, commonly referred to as the **Palermo Protocol**, adopted in 2000[20]. This protocol introduced a widely accepted definition of trafficking that identifies the various stages and methods through which trafficking occurs. It also encourages states to adopt comprehensive strategies encompassing prevention, criminalization, and victim protection.

[20] Protocol to Prevent, Suppress and Punish Trafficking in Persons, Especially Women and Children (2000).

Another significant instrument is the **Convention on the Elimination of All Forms of Discrimination Against Women (CEDAW)**[21]. The Convention recognizes that trafficking in women is closely linked to gender inequality and requires states to adopt measures aimed at eliminating such practices. By framing trafficking as a form of discrimination and violence against women, CEDAW highlights the broader structural factors that contribute to women's vulnerability.

The **United Nations Convention on the Rights of the Child (UNCRC)** also addresses trafficking from the perspective of child protection[22]. The Convention obliges states to take legislative and administrative measures to prevent the exploitation of children in economic activities, sexual abuse, and other harmful practices.

International labour standards developed by the **International Labour Organization (ILO)** further reinforce the global commitment to eliminating forced labour and child labour. These instruments emphasize that exploitative labour practices violate fundamental human rights and must be addressed through coordinated international action.

India's participation in these international frameworks has influenced the development of domestic legislation aimed at combating trafficking. Many of the reforms introduced in recent decades reflect an attempt to align national law with global standards concerning victim protection and criminal accountability.

[21] Convention on the Elimination of All Forms of Discrimination Against Women (1979).
[22] United Nations Convention on the Rights of the Child (1989).

However, the translation of international commitments into effective domestic enforcement remains a continuing challenge. Legislative reforms must be accompanied by institutional capacity, inter-agency coordination, and sustained political commitment if the objectives of these international instruments are to be realized in practice.

CHAPTER 4

JUDICIAL RESPONSE: CASE LAW ANALYSIS AND JUDICIAL TRENDS

4.1 Introduction

Courts do not make anti-trafficking policy. They do not allocate budgets to rehabilitation programmes, train police officers in victim identification, or negotiate bilateral agreements with neighbouring countries to repatriate trafficked persons. What they do — what only they can do — is impose interpretive discipline on statutory provisions, extend constitutional protection to individuals whom other institutions have failed, and hold the executive accountable for obligations it has undertaken but not discharged. In a country where anti-trafficking legislation is fragmented and enforcement is uneven, the significance of judicial intervention depends on understanding precisely what courts can and cannot accomplish, and on measuring their actual contribution against both standards.

India's judiciary has engaged with trafficking through two distinct channels. The first is the public interest litigation mechanism, which has allowed civil society organisations, social activists, and concerned individuals to bring structural problems before the Supreme Court and High Courts without requiring individual victims to initiate proceedings. The second channel is ordinary appellate and revisional jurisdiction, through which High Courts review decisions of trial courts in individual trafficking cases.

The judicial landscape now faces a transitional challenge of practical significance. All offences committed on or after July 1, 2024 are prosecuted

under the BNS rather than the IPC. Cases registered before that date continue under the IPC framework. Courts are therefore simultaneously operating under two statutory regimes. The sentencing provisions differ: BNS Section 143's seven graduated sub-sections provide more precise guidance than IPC Section 370's provisions, and Section 143(7)'s natural life imprisonment for public servant involvement is a categorically new sentencing outcome with no IPC equivalent. The organised crime provision in BNS Section 111 is available for post-July 2024 cases but not for earlier prosecutions. Courts managing cases under both regimes will need to develop consistent interpretive principles while acknowledging these structural differences.

One conclusion emerges clearly from the analysis of the existing case law and deserves stating at the outset: judicial intervention has been indispensable but insufficient. Indispensable, because courts have repeatedly identified systemic failures that legislatures and executive agencies were content to ignore. Insufficient, because the enforcement of judicial directions — the translation of court orders into changed institutional behaviour — has been persistently weak. The BNS's Section 111 organised crime framework and the enhanced penalties of Section 143 may give prosecutors and courts new instruments to address the systemic dimensions of trafficking that PIL jurisprudence has long identified but that criminal prosecution has been unable to dismantle. Whether those instruments are deployed effectively is a question of institutional practice that no statute can answer on its own.

4.2 Public Interest Litigation and Judicial Intervention in Trafficking Cases

One of the distinctive features of India's judicial system is the development of **Public Interest Litigation (PIL)** as a mechanism for addressing issues affecting vulnerable sections of society. PIL allows individuals or organizations to approach courts on behalf of persons who may not have the resources or capacity to pursue legal remedies themselves. This procedural innovation has played a particularly important role in bringing the issue of human trafficking before the judiciary.

Victims of trafficking often belong to economically marginalized communities and may lack access to legal assistance. In many cases, they are unaware of their rights or may fear retaliation from traffickers if they attempt to seek justice. The availability of PIL therefore enables civil society organizations and social activists to raise concerns about trafficking and request judicial intervention on behalf of affected individuals.

Through PIL proceedings, courts have been able to examine broader systemic issues related to trafficking rather than limiting their focus to individual criminal cases. Such proceedings have addressed matters including rescue operations, rehabilitation policies, protection of minors, and the need for improved coordination among government agencies responsible for combating trafficking.

A significant example of judicial engagement through PIL can be seen in **Vishal Jeet v Union of India**, where the Supreme Court examined the widespread trafficking of women and children for the purpose of

prostitution[23]. Recognizing the seriousness of the issue, the Court directed government authorities to establish committees tasked with studying the problem and recommending measures to prevent exploitation and rehabilitate victims. The decision reflected an acknowledgment that trafficking requires coordinated policy responses rather than isolated enforcement actions.

Another important case illustrating judicial concern for victims of trafficking is **Gaurav Jain v Union of India**, in which the Supreme Court addressed the conditions faced by children born to women engaged in prostitution[24]. The Court emphasized that these children should not be stigmatized or denied access to education and social opportunities due to the circumstances of their birth. By focusing on the long-term welfare of affected children, the judgment broadened the scope of judicial attention to include issues of rehabilitation and social integration.

Judicial engagement through PIL has also involved monitoring the implementation of government programs aimed at addressing trafficking. Courts have occasionally required authorities to submit reports detailing the steps taken to combat trafficking and provide assistance to victims. This form of judicial oversight reflects an effort to ensure that legislative and policy commitments are translated into practical action.

However, the increasing role of courts in addressing trafficking has also generated debate among legal scholars regarding the appropriate limits of judicial intervention. While judicial activism can help highlight neglected social problems, long-term solutions ultimately depend on legislative

[23] Vishal Jeet v Union of India (1990) 3 SCC 318.
[24] Gaurav Jain v Union of India (1997) 8 SCC 114.

reform, administrative capacity, and effective implementation of policies by executive authorities.

Despite these debates, the contribution of PIL to anti-trafficking jurisprudence remains significant. By providing a platform through which systemic issues can be brought before the courts, PIL has helped shape the legal discourse surrounding trafficking and has encouraged greater institutional accountability in addressing this serious human rights concern.

4.3 Landmark Supreme Court Judgments on Trafficking

Judicial decisions of the Supreme Court of India have played a significant role in shaping the country's response to human trafficking. Although statutory provisions provide the formal legal framework, the interpretation and enforcement of these laws depend largely on judicial engagement. Through a series of landmark rulings, the Supreme Court has clarified the scope of anti-trafficking legislation, emphasized the protection of vulnerable groups, and encouraged the development of victim-centred approaches within the legal system.

These judgments illustrate how the judiciary has addressed trafficking not merely as an issue of criminal wrongdoing but as a violation of fundamental rights. By linking trafficking with constitutional guarantees such as dignity, liberty, and protection from exploitation, the Court has reinforced the idea that combating trafficking requires a broader human rights perspective.

4.3.1 Vishal Jeet v Union of India

One of the earliest instances in which the Supreme Court addressed the issue of trafficking in a comprehensive manner was the case of *Vishal Jeet v Union of India*[25]. The petition drew the Court's attention to the widespread exploitation of women and children in prostitution networks operating across different parts of the country. It was alleged that many minors were being recruited through deception or coercion and subsequently forced into commercial sexual exploitation.

In examining the matter, the Court recognized that trafficking involved complex social and economic factors that could not be addressed solely through criminal prosecution. The Court therefore directed both the central and state governments to establish advisory bodies responsible for developing strategies to prevent trafficking and to provide rehabilitation for victims.

The decision highlighted the importance of cooperation between law enforcement authorities and social welfare institutions. It also emphasized that individuals forced into prostitution should not be viewed primarily as offenders but as victims requiring protection and assistance. This perspective marked an important shift in judicial thinking by placing greater emphasis on rehabilitation rather than punishment.

4.3.2 Gaurav Jain v Union of India

The Supreme Court continued to expand its approach to trafficking-related issues in *Gaurav Jain v Union of India*[26]. This case focused on the social and legal challenges faced by children of women engaged in prostitution. The

[25] Vishal Jeet v Union of India (1990) 3 SCC 318.
[26] Gaurav Jain v Union of India (1997) 8 SCC 114.

petitioner argued that such children often experienced discrimination, social exclusion, and limited access to education due to the stigma attached to their mothers' occupation.

In its judgment, the Court emphasized that children should not suffer disadvantages because of circumstances beyond their control. It observed that the state had an obligation to ensure that these children were provided with educational opportunities and support systems that would enable them to lead independent and dignified lives.

The Court also recognized the need for comprehensive rehabilitation programs for women who had been rescued from prostitution. It suggested that specialized institutions should be developed to provide counselling, education, and vocational training so that victims could pursue alternative livelihoods. By addressing the long-term welfare of both women and children affected by trafficking, the judgment broadened the scope of judicial concern beyond immediate criminal enforcement.

4.3.3 Budhadev Karmaskar v State of West Bengal

Another significant development in the judicial discourse on trafficking and prostitution emerged from *Budhadev Karmaskar v State of West Bengal*[27]. The case initially involved the criminal conviction of an individual accused of murdering a sex worker. During the course of the proceedings, however, the Supreme Court expanded the scope of the case to consider the broader socio-legal issues affecting women involved in prostitution.

[27] Budhadev Karmaskar v State of West Bengal (2011) 10 SCC 283.

The Court observed that many individuals enter prostitution due to circumstances such as poverty, deception, or trafficking. Recognizing the vulnerability of such individuals, the Court emphasized that their basic rights and dignity must be respected. The judgment therefore underscored the importance of policies aimed at providing economic and social support to individuals who wished to leave prostitution.

To examine these issues in greater detail, the Court constituted a committee tasked with studying the conditions faced by sex workers and proposing measures to improve their welfare. The committee was expected to explore avenues for rehabilitation, social integration, and protection from exploitation.

This case demonstrated the Court's willingness to engage with the broader structural factors that contribute to trafficking and exploitation. By framing the issue in terms of human dignity and social justice, the Court encouraged policymakers to adopt a more comprehensive approach to addressing the problem.

4.3.4 Prajwala v Union of India

Technological developments have introduced new dimensions to the problem of trafficking, particularly through the circulation of exploitative content on digital platforms. The Supreme Court addressed this issue in *Prajwala v Union of India*, where the petitioner highlighted the widespread distribution of videos depicting sexual violence and exploitation of women and children[28].

[28] Prajwala v Union of India (2015) 16 SCC 255.

The Court recognized that the dissemination of such material could contribute to trafficking by normalizing exploitation and generating demand for abusive content. In response, it directed government authorities to develop mechanisms for preventing the circulation of such material and to improve coordination with internet service providers.

The Court also emphasized the importance of protecting the dignity and privacy of victims during investigations and judicial proceedings. By acknowledging the role of digital technologies in facilitating exploitation, the judgment reflected an evolving judicial awareness of the changing nature of trafficking in contemporary society.

4.3.5 Emerging Judicial Principles

An examination of these decisions reveals several key principles that characterize the judicial approach to trafficking in India. First, the courts increasingly view trafficking as a violation of fundamental rights rather than solely as a criminal offence. This perspective encourages a broader understanding of trafficking as a problem involving social justice and human dignity.

Second, judicial decisions frequently emphasize the importance of rehabilitation and reintegration for victims. Courts have repeatedly noted that effective responses to trafficking must address the economic and social conditions that contribute to vulnerability.

Third, the judiciary has demonstrated a willingness to issue directions aimed at improving institutional responses to trafficking. These directions often involve recommendations for policy reform, coordination between agencies, and the development of support services for victims.

Taken together, these judicial interventions have played an important role in shaping the legal discourse on trafficking in India. Although legislative reforms remain essential for addressing the problem comprehensively, the judiciary has contributed significantly to advancing a rights-based approach to combating trafficking and protecting vulnerable individuals.

4.4 High Court Jurisprudence on Trafficking

Although the Supreme Court has delivered several foundational judgments concerning trafficking, High Courts across India also play a crucial role in shaping the day-to-day application of anti-trafficking laws. Because High Courts frequently deal with appeals, bail matters, and constitutional petitions arising from trafficking investigations, they are often confronted with the practical challenges that accompany the enforcement of these laws. Their decisions therefore provide important insight into how anti-trafficking statutes function within the broader criminal justice system.

A significant aspect of High Court jurisprudence concerns the **interpretation of consent and coercion in trafficking cases**. Individuals accused of trafficking or exploitation often claim that victims voluntarily participated in prostitution or labour arrangements. High Courts have repeatedly examined such claims in light of the broader circumstances surrounding recruitment, transportation, and working conditions. In situations where evidence suggests deception, abuse of authority, or economic vulnerability, courts have emphasized that the presence of apparent consent cannot negate the existence of exploitation. This reasoning

reflects the recognition that traffickers frequently rely on manipulation and misinformation rather than overt physical force.

Another important area addressed by High Courts relates to the **treatment of rescued individuals during the investigative process**. Courts have frequently emphasized that persons rescued from brothels or forced labour environments should not automatically be treated as offenders. Instead, they must be recognized as individuals who may have been compelled into exploitative circumstances. Consequently, High Courts have directed authorities to ensure that such individuals are provided access to protective homes, counselling services, and rehabilitation programs consistent with the relevant statutory frameworks.

High Courts have also intervened in cases involving **missing persons suspected of being trafficked**. Through the exercise of their constitutional jurisdiction, particularly under Articles 226 and 227 of the Constitution, courts have ordered investigations, directed law enforcement agencies to trace victims, and ensured that rescued persons are produced before appropriate authorities. Habeas corpus petitions have frequently served as a mechanism through which families or social organizations seek judicial assistance in locating individuals believed to have been trafficked.

Judicial scrutiny at the High Court level has additionally exposed **investigative shortcomings in trafficking cases**. Courts have occasionally expressed concern regarding inadequate evidence collection, delays in filing chargesheets, and insufficient coordination between police departments operating in different jurisdictions. In response, High Courts have directed

investigative agencies to adopt more rigorous procedures and to ensure that cases involving trafficking are handled with greater diligence.

The contribution of High Courts to anti-trafficking jurisprudence therefore lies not only in their interpretation of statutory provisions but also in their role as supervisory authorities ensuring that investigative and administrative processes function effectively. Through these interventions, High Courts have reinforced the principle that trafficking offences require careful handling in order to protect victims while holding perpetrators accountable.

4.5 Judicial Trends and Critical Evaluation

Reading the body of judicial decisions on trafficking across three decades, several trends become apparent. The most consistent is the progressive constitutionalisation of the issue — courts have increasingly located anti-trafficking obligations within the fundamental rights framework, particularly Article 21's guarantee of the right to life with dignity and Article 23's explicit prohibition on trafficking and forced labour. The BNS's legislative architecture reinforces this constitutional framing in its own way: Section 143(7)'s natural life imprisonment for public servant involvement reflects a legislative acknowledgement — long demanded by the judiciary — that official complicity in trafficking is not merely an aggravating criminal circumstance but a fundamental betrayal of state obligations towards the most vulnerable. Courts applying Section 143(7) will operate within a framework that is, for the first time, explicitly calibrated to the constitutional severity of that betrayal.

The second trend is the gradual recognition of trafficked persons as rights-bearing victims rather than as participants in illegal activity. The BNS reinforces this judicially-developed principle through Explanation 2 to Section 143, which makes victim consent immaterial to determination of the offence. Courts applying Section 143 will no longer need to navigate the doctrinal complexity that sometimes attended arguments about 'voluntary' participation under the IPC framework — the consent question is definitively settled by the statute itself, in terms that reflect the reasoning developed by the Supreme Court in Vishal Jeet, Gaurav Jain, and Budhadev Karmaskar.

The third trend — and the most problematic from a systemic perspective — is the gap between judicial direction and institutional implementation. The Supreme Court has repeatedly directed governments to establish anti-trafficking committees, develop rehabilitation infrastructure, and address enforcement failures. The BNS's introduction of Section 111 organised crime provisions covering trafficking creates a new institutional imperative: law enforcement agencies must now consider whether a trafficking operation meets the threshold of organised criminal activity, with the expanded enforcement powers and forfeiture provisions that classification brings. Whether this legislative invitation will be accepted, or ignored as previous judicial invitations have been, is a question that only post-enactment practice can answer. The judicial trends this chapter identifies suggest that the normative framework is now well-developed; what is needed is the institutional will to act on it.

4.6 Additional Judicial Interventions in Combating Human Trafficking

Indian constitutional courts have frequently intervened to address systemic failures in the protection of women and children from trafficking. Through public interest litigation and progressive interpretation of constitutional rights, the judiciary has attempted to bridge the gap between legislative intent and actual implementation.

One of the earliest interventions occurred in **Vishal Jeet v Union of India**, where the Supreme Court addressed the growing problem of child prostitution and trafficking. The Court observed that the commercial sexual exploitation of minors was not merely a criminal issue but a serious violation of human dignity. It directed the Central and State Governments to establish advisory committees to examine the functioning of existing laws and recommend measures for prevention, rescue, and rehabilitation of victims. The Court also emphasized the need for coordinated action between social welfare authorities, law enforcement agencies, and voluntary organisations.

Subsequently, in **Gaurav Jain v Union of India**, the Supreme Court examined the social realities that perpetuate prostitution and trafficking. The Court acknowledged that many women engaged in prostitution come from extremely disadvantaged socio-economic backgrounds. It therefore stressed the importance of rehabilitation programmes that provide education, employment opportunities, and social reintegration for both the women involved in sex work and their children.

Another important contribution of the judiciary can be seen in **Bandhua Mukti Morcha v Union of India**, where the Supreme Court expanded the

interpretation of Article 23 of the Constitution relating to forced labour. The Court held that labour performed under conditions of economic compulsion or extreme poverty could amount to forced labour. This interpretation significantly broadened the legal framework addressing trafficking for labour exploitation.

Similarly, the Supreme Court in **People's Union for Democratic Rights v Union of India** clarified that payment of wages below the statutory minimum wage may constitute a form of forced labour prohibited under Article 23. This interpretation strengthened legal protections for vulnerable workers who may otherwise be exploited through trafficking networks.

Judicial concern regarding child labour and trafficking was further demonstrated in **M.C. Mehta v State of Tamil Nadu**, where the Court directed the establishment of a compensation and rehabilitation mechanism for children rescued from hazardous employment. Employers who violated child labour laws were required to contribute compensation to a welfare fund designed to support the rehabilitation and education of rescued children.

CHAPTER 5

POLICY GAPS AND IMPLEMENTATION FAILURES

5.1 Introduction

There is a particular kind of institutional failure that is harder to diagnose than outright illegality or wilful neglect. It is the failure that occurs when laws are enacted in good faith, programmes are designed with genuine ambition, and institutions are assigned clear responsibilities — and yet the problem the law was meant to solve continues essentially unabated. This is the failure that characterises India's anti-trafficking policy landscape, and it persists despite the significant legislative improvements the BNS represents.

The enactment of the Bharatiya Nyaya Sanhita, 2023, and specifically the commencement of its trafficking provisions on July 1, 2024, represents the most significant development in India's anti-trafficking criminal law in over a decade. Section 143's expansion of the definition of exploitation to include beggary, its graduated punishment structure providing clearer sentencing guidance to courts, its severe provision for public servant involvement under sub-section (7), and Section 111's classification of human trafficking as organised crime with forfeiture consequences — these are genuine improvements over the IPC framework. But they are improvements to the legal text, not to the institutional infrastructure that determines whether legal text translates into effective protection. The policy failures examined in this chapter are not primarily failures of legislation. They are failures of implementation, coordination, and political will.

Section 111 of the BNS offers a useful illustration of this distinction between text and practice. On paper, the provision gives prosecutors the ability to pursue trafficking syndicates as organised criminal enterprises, to apply for forfeiture of property derived from trafficking, and to invoke penalties that extend to natural life imprisonment or death. In practice, deploying Section 111 against a trafficking network requires investigators trained in organised crime case construction, prosecutors experienced in building syndicate-level cases, and courts equipped to adjudicate complex forfeiture proceedings. None of these institutional capacities exist at adequate scale within India's anti-trafficking enforcement infrastructure as currently constituted. The legislative provision exists; the institutional capacity to use it does not. This gap — between what the BNS authorises and what enforcement agencies can deliver — is the defining feature of India's current policy position on trafficking.

This chapter examines implementation failures in four dimensions: legislative fragmentation, which the BNS partially but not fully resolves; enforcement failure, which the BNS's new provisions do not by themselves address; the inadequacy of victim protection and rehabilitation mechanisms, which the BNS as a criminal code does not govern at all; and the data deficit, which no current legislation mandates addressing. These four dimensions interact in ways that make the overall system less than the sum of its parts, and no legislative reform of criminal sentencing, however well-designed, can substitute for the structural changes this chapter identifies as necessary.

5.2 Fragmentation within the Legal Framework

A major structural weakness in India's response to trafficking arises from the absence of a single comprehensive statute addressing the issue in its entirety. Instead, the legal framework consists of multiple laws that regulate specific forms of exploitation. While these statutes collectively cover several aspects of trafficking, their fragmented nature can create practical difficulties in enforcement and policy coordination.

For instance, the **Immoral Traffic (Prevention) Act, 1956** primarily addresses exploitation connected with prostitution, whereas the **Indian Penal Code** criminalizes trafficking and related offences through provisions such as Sections 370 and 370A. Additional legislation—including the **Protection of Children from Sexual Offences Act**, the **Juvenile Justice (Care and Protection of Children) Act**, and the **Bonded Labour System (Abolition) Act**—addresses particular forms of exploitation involving children or labourers[29].

Although each of these statutes plays an important role, their simultaneous application may complicate legal proceedings. Investigators and prosecutors must often determine which legal provisions are most appropriate for a particular case. Because trafficking operations frequently involve multiple forms of exploitation, the application of different statutes may result in overlapping charges or procedural uncertainty.

Fragmentation also affects the **administrative structure responsible for implementing anti-trafficking measures**. Different government

[29] Immoral Traffic (Prevention) Act 1956; Indian Penal Code 1860; Protection of Children from Sexual Offences Act 2012; Juvenile Justice (Care and Protection of Children) Act 2015; Bonded Labour System (Abolition) Act 1976.

departments are tasked with enforcing different statutes, which can lead to inconsistent approaches across regions. For example, labour authorities may focus on forced labour cases while police departments concentrate on prostitution-related offences. Without a centralized framework coordinating these efforts, the overall response to trafficking may remain disjointed.

The lack of an integrated legal framework also complicates the development of uniform policies for victim protection. Some statutes emphasize criminal prosecution, while others prioritize rehabilitation and welfare measures. The absence of a coherent legislative structure means that victims may receive varying levels of assistance depending on the specific law under which their case is handled.

In recognition of these limitations, policymakers have proposed initiatives aimed at consolidating anti-trafficking measures within a single legal framework. Legislative proposals such as the **Trafficking in Persons (Prevention, Care and Rehabilitation) Bill** have sought to create specialized investigative bodies, improve coordination among enforcement agencies, and strengthen mechanisms for victim rehabilitation[30]. Although these proposals indicate increasing awareness of the need for reform, the process of establishing a comprehensive anti-trafficking statute remains ongoing.

From a policy perspective, the fragmented nature of existing legislation may reduce the effectiveness of anti-trafficking efforts by dispersing responsibilities across multiple institutions. A more unified legal structure could facilitate clearer definitions of offences, improve institutional

[30] Trafficking in Persons (Prevention, Care and Rehabilitation) Bill 2018.

coordination, and ensure that victim protection remains a central element of anti-trafficking policy.

5.3 Limitations in Enforcement and Institutional Coordination

The presence of statutory provisions addressing trafficking does not automatically guarantee effective control of the crime. The success of anti-trafficking laws depends heavily on the ability of enforcement institutions to investigate offences, protect victims, and prosecute offenders. In India, however, several structural weaknesses within the enforcement system have limited the impact of existing legislation.

One of the principal challenges concerns the complexity of trafficking networks. Trafficking operations often involve multiple intermediaries responsible for recruitment, transportation, accommodation, and exploitation of victims. These networks frequently operate across state boundaries and, in some cases, across international borders. Investigating such activities requires specialized expertise, access to reliable intelligence, and coordination among multiple enforcement agencies. In many situations, however, investigative authorities lack the training and resources necessary to pursue these complex cases effectively.

Another significant difficulty arises from institutional fragmentation among agencies responsible for combating trafficking. Different government departments address different dimensions of the problem. Police agencies typically focus on criminal prosecution, labour departments handle issues

related to forced labour, while child protection authorities deal with cases involving minors. Although each of these institutions plays an important role, insufficient coordination between them often results in gaps in enforcement.

For example, when victims are rescued from exploitative labour environments, cooperation between police authorities and labour inspectors becomes essential to ensure that both criminal accountability and labour protections are enforced. In practice, however, communication between these institutions may be limited, resulting in delays or incomplete investigations. Such coordination failures can weaken legal proceedings and reduce the likelihood of successful prosecution.

A further concern involves the limited capacity of investigative agencies to collect and present evidence in trafficking cases. Successful prosecution requires the establishment of several elements, including recruitment, transportation, and exploitation. Gathering evidence for each stage of the trafficking process can be difficult, particularly when victims have been moved across multiple locations or when traffickers rely on informal recruitment methods that leave little documentary evidence.

Victims themselves may also be reluctant to participate in legal proceedings. Fear of retaliation from traffickers, economic dependence, and social stigma can discourage survivors from cooperating with investigators or testifying in court. In the absence of effective witness protection measures and victim

support services, these factors may significantly weaken prosecution efforts.

In addition to these challenges, certain regions have reported instances where trafficking networks operate with the assistance of local intermediaries who facilitate recruitment or transportation of victims. When such intermediaries possess social influence within their communities, law enforcement agencies may encounter additional difficulties in disrupting trafficking operations.

To address some of these issues, the government has established specialized investigative structures such as Anti-Human Trafficking Units (AHTUs) within several states. These units are intended to enhance coordination between law enforcement agencies and social welfare organizations. While the establishment of such units represents a positive development, their effectiveness depends on sustained training, adequate funding, and continuous institutional support.

Overall, weaknesses in enforcement and institutional coordination remain significant obstacles in the fight against trafficking. Without improved investigative capacity and stronger collaboration among relevant agencies, existing laws may fail to produce the desired impact in preventing exploitation.

5.4 Challenges in Victim Protection and Rehabilitation

An effective response to trafficking must extend beyond the punishment of offenders and include meaningful support for individuals who have been subjected to exploitation. Survivors of trafficking frequently experience severe physical, psychological, and social consequences as a result of their experiences. Consequently, policies addressing trafficking must incorporate comprehensive rehabilitation strategies aimed at enabling victims to rebuild their lives.

In India, several mechanisms have been introduced to assist trafficking survivors, including shelter homes, counselling services, and vocational training programs. These initiatives are intended to provide temporary protection and facilitate the eventual reintegration of survivors into society. However, the availability and effectiveness of such services vary widely across different regions.

One significant concern relates to the limited capacity and infrastructure of rehabilitation facilities. Many shelter homes operate with restricted financial resources and insufficient professional staff. As a result, survivors may not receive the level of psychological counselling or vocational guidance necessary for long-term recovery. Overcrowded facilities can further reduce the effectiveness of rehabilitation programs and may create environments that do not adequately address the needs of victims.

Reintegration into society presents another major challenge for trafficking survivors. Individuals who have been subjected to exploitation often face

negative social perceptions when attempting to return to their communities. In certain cases, families may hesitate to accept survivors due to social stigma or concerns regarding community reputation. These social barriers can isolate survivors and complicate their efforts to rebuild stable lives.

Economic vulnerability also remains a critical factor affecting rehabilitation outcomes. Many individuals who become victims of trafficking originate from economically marginalized backgrounds. After being rescued, they may struggle to obtain stable employment or access educational opportunities. Without sustainable livelihood options, survivors may remain vulnerable to further exploitation.

Psychological recovery represents an equally important dimension of rehabilitation. Survivors of trafficking frequently endure prolonged periods of abuse, coercion, and deprivation. These experiences may lead to long-term mental health challenges, including anxiety, depression, and trauma-related disorders. Effective rehabilitation therefore requires access to professional mental health services, yet such services are not always adequately integrated into existing support programs.

Another important consideration involves the legal treatment of survivors during criminal proceedings. Historically, individuals involved in prostitution or certain forms of labour exploitation were sometimes treated as offenders rather than victims. Recent legal developments and judicial decisions have increasingly emphasized that trafficked persons should be

recognized as victims entitled to protection and assistance. However, the consistent implementation of this principle across different jurisdictions remains a continuing challenge.

Addressing these issues requires a more comprehensive rehabilitation framework that integrates social welfare policies with legal protections. Effective rehabilitation programs must include economic empowerment initiatives, mental health support, educational opportunities, and community awareness campaigns aimed at reducing stigma. Only through such multidimensional strategies can the long-term well-being of trafficking survivors be ensured.

5.5 Assessment of Government Rehabilitation and Prevention Schemes

In addition to legislative efforts, the Indian government has introduced several policy initiatives designed to address the social consequences of trafficking and support individuals who have been rescued from exploitative situations. Among these initiatives, the **Ujjawala Scheme** and the **Swadhar Greh Scheme** are particularly significant, as they aim to provide assistance to women who have experienced exploitation, abandonment, or other forms of social vulnerability. While these programs reflect an important policy commitment to victim welfare, their practical effectiveness depends largely on the quality of implementation and the availability of institutional resources.

The **Ujjawala Scheme**, implemented by the Ministry of Women and Child Development, was specifically developed to address trafficking of women

and children for sexual exploitation. The program attempts to address the problem through a multi-dimensional strategy that includes preventive awareness programs, rescue operations, temporary shelter, rehabilitation services, and eventual reintegration of survivors into society[31]. By combining preventive and rehabilitative elements, the scheme seeks to reduce the risk of trafficking while simultaneously assisting individuals who have already experienced exploitation.

One of the central components of the scheme is the establishment of shelter facilities where rescued individuals can receive temporary accommodation, medical treatment, psychological counselling, and vocational training. These services are intended to assist survivors in recovering from trauma and developing the skills necessary to achieve financial independence. In principle, this integrated approach acknowledges that trafficking cannot be effectively addressed without supporting the long-term recovery of victims.

However, the implementation of the scheme has encountered several difficulties. In certain regions, the availability of designated rehabilitation centres remains limited, which can delay the provision of support services to rescued individuals. Even where such centres exist, they may face shortages of trained personnel and financial resources. These limitations can reduce the effectiveness of rehabilitation programs and restrict the range of services available to survivors.

Another important concern involves the **evaluation and monitoring of program outcomes**. Effective rehabilitation requires continuous assessment of whether survivors are able to reintegrate into society and maintain stable

[31] Ministry of Women and Child Development, Government of India, Ujjawala Scheme for Prevention of Trafficking and Rescue, Rehabilitation and Reintegration of Victims (2007).

livelihoods after leaving institutional care. In many cases, however, systematic monitoring mechanisms are insufficiently developed, making it difficult to determine the long-term success of rehabilitation initiatives.

The **Swadhar Greh Scheme** represents another government initiative designed to assist women who lack adequate social or family support. This program provides temporary shelter and assistance to women facing difficult circumstances, including survivors of trafficking, victims of domestic violence, and women who have been abandoned by their families[32]. The scheme aims to provide basic necessities such as housing, food, medical care, and counselling services while also offering opportunities for skill development and employment.

Through these measures, the program attempts to address the economic and social vulnerabilities that may expose women to exploitation. By helping beneficiaries develop vocational skills and secure employment opportunities, the scheme seeks to promote long-term independence and reduce the likelihood that survivors will become vulnerable to further exploitation.

Despite these objectives, the program faces challenges similar to those affecting other rehabilitation initiatives. Inadequate funding, shortage of professional staff, and limited availability of specialized counselling services may reduce the effectiveness of assistance provided to beneficiaries. In addition, social stigma and lack of employment opportunities may make it difficult for survivors to reintegrate into their communities even after receiving institutional support.

[32] Ministry of Women and Child Development, Government of India, Swadhar Greh Scheme (2015).

These limitations suggest that rehabilitation policies require stronger institutional support and more comprehensive monitoring systems. Improved coordination between government agencies and civil society organizations could enhance the delivery of services and ensure that survivors receive consistent assistance during the recovery process.

5.6 Deficiencies in Data Collection and Policy Planning

Reliable information regarding the scale and characteristics of trafficking is essential for developing effective strategies to address the problem. Accurate data enables policymakers to identify vulnerable populations, allocate resources efficiently, and evaluate the success of existing programs. However, the availability of comprehensive data on trafficking in India remains limited, which creates significant obstacles for policy planning.

One of the primary challenges arises from the **underreporting of trafficking incidents**. Victims may hesitate to report exploitation due to fear of retaliation, social stigma, or lack of trust in authorities. In addition, trafficking often occurs in informal labour sectors or hidden environments where exploitation may remain undetected for long periods. As a result, official statistics may capture only a portion of the total number of trafficking cases.

Another difficulty stems from the **fragmented nature of data collection across different institutions**. Various government agencies maintain records related to trafficking within their respective areas of responsibility. Police authorities document criminal cases, labour departments monitor forced labour violations, and child protection agencies track cases involving

minors. Because these records are maintained separately, it can be challenging to develop a comprehensive picture of trafficking patterns across the country.

The absence of integrated databases also affects the ability of authorities to track trafficking networks that operate across multiple jurisdictions. Trafficking frequently involves the movement of victims from one state to another, and in some cases across international borders. Without effective information-sharing mechanisms, law enforcement agencies may struggle to identify connections between cases occurring in different regions.

In addition to administrative limitations, the lack of extensive empirical research on trafficking dynamics further complicates policy development. Detailed studies examining the socioeconomic factors that contribute to trafficking remain relatively limited. Greater investment in interdisciplinary research could help identify the underlying conditions that enable trafficking networks to operate and assist policymakers in designing targeted prevention strategies.

Improving data collection systems therefore represents a crucial step in strengthening anti-trafficking policy. The development of centralized databases, enhanced cooperation between government agencies, and greater support for academic research could significantly improve the ability of policymakers to understand trafficking patterns and respond effectively.

Ultimately, the effectiveness of anti-trafficking policies depends not only on legal frameworks but also on the availability of reliable information and well-coordinated institutional strategies. Strengthening data systems and

research initiatives can therefore contribute to more informed policy decisions and more effective prevention measures.

CHAPTER 6

FINDINGS, SUGGESTIONS AND CONCLUSION

6.1 Introduction

Human trafficking continues to represent one of the most serious violations of human rights in the contemporary world. The trafficking of women and children, in particular, involves severe forms of exploitation including sexual exploitation, forced labour, domestic servitude, and other forms of coercion. Such practices violate fundamental rights and undermine the dignity and liberty of individuals. International organizations and national governments have therefore recognized trafficking as a major global challenge requiring coordinated legal and policy responses.

India has enacted several laws addressing different forms of trafficking and exploitation. Legislative measures such as the *Immoral Traffic (Prevention) Act, 1956*, provisions of the *Indian Penal Code*, and the *Protection of Children from Sexual Offences Act, 2012* provide legal mechanisms to prosecute trafficking-related offences.[33] Despite these measures, trafficking networks continue to operate across different regions of the country.

The persistence of trafficking indicates that legal frameworks alone are insufficient unless accompanied by effective enforcement mechanisms, institutional coordination, and comprehensive rehabilitation programs for survivors. International instruments such as the **United Nations Palermo**

[33] Immoral Traffic (Prevention) Act 1956; Indian Penal Code 1860; Protection of Children from Sexual Offences Act 2012.

Protocol emphasize that combating trafficking requires a multidimensional strategy involving prevention, prosecution, and protection of victims.[34]

This dissertation has examined the problem of trafficking of women and children in India through an analysis of the legal framework, judicial responses, and policy gaps affecting implementation. It has also compared India's anti-trafficking approach with international models adopted in other jurisdictions.

6.2 Major Findings of the Study

6.2.1 Trafficking as a Multidimensional Social Problem

One of the primary findings of this research is that trafficking cannot be understood solely as a criminal activity. Instead, it must be viewed as a complex social phenomenon influenced by economic, social, and cultural factors.

Poverty, unemployment, gender discrimination, and lack of educational opportunities create conditions that increase the vulnerability of individuals to trafficking. Traffickers frequently exploit these vulnerabilities by offering deceptive promises of employment, marriage, or financial security.

Women and children from marginalized communities are particularly susceptible to trafficking because they often lack access to social protection and legal awareness. Migration patterns also play a crucial role, as

[34] Protocol to Prevent, Suppress and Punish Trafficking in Persons, Especially Women and Children (2000).

individuals who migrate in search of economic opportunities may be exposed to exploitative labour conditions[35].

The multidimensional nature of trafficking suggests that legal enforcement alone cannot eliminate the problem. Effective responses must address the underlying social and economic factors that contribute to vulnerability.

6.2.2 Fragmentation of the Legal Framework

Another important finding relates to the fragmented structure of India's legal framework addressing trafficking. Several statutes regulate different aspects of trafficking, including:

- The **Immoral Traffic (Prevention) Act, 1956**
- Provisions of the **Indian Penal Code**
- The **Protection of Children from Sexual Offences Act, 2012**
- The **Juvenile Justice Act, 2015**
- The **Bonded Labour System (Abolition) Act, 1976**

Although these laws collectively address various forms of exploitation, their overlapping provisions sometimes create confusion regarding enforcement responsibilities.

Investigators often rely on multiple statutes when prosecuting trafficking cases, which can complicate legal proceedings. The absence of a single

[35] International Labour Organization, Global Estimates of Modern Slavery (ILO 2017).

comprehensive anti-trafficking law may therefore weaken the overall effectiveness of the legal framework.[36]

6.2.3 Judicial Contribution to Anti-Trafficking Jurisprudence

The study also reveals that the judiciary has played an important role in shaping India's anti-trafficking framework. Through landmark decisions, courts have expanded the interpretation of trafficking laws and emphasized the protection of victims' rights.

Judgments such as **Vishal Jeet v Union of India**, **Gaurav Jain v Union of India**, and **Budhadev Karmaskar v State of West Bengal** have highlighted the need for rehabilitation programs and institutional reforms to address exploitation.

The judiciary has consistently recognized trafficking as a violation of fundamental rights, particularly the right to dignity and freedom from exploitation under the Constitution of India.

However, judicial intervention alone cannot address the broader structural challenges associated with trafficking. Effective implementation of judicial directives requires coordinated action from legislative and executive institutions.

6.2.4 Weak Enforcement Mechanisms

Another major finding of the study relates to weaknesses in enforcement mechanisms. Investigating trafficking networks is often difficult because

[36] Trafficking in Persons (Prevention, Care and Rehabilitation) Bill 2018.

such networks operate through complex chains involving recruiters, transporters, and exploiters.

Law enforcement agencies may face challenges in collecting evidence, identifying victims, and tracing the entire trafficking chain. Limited training and resources further complicate investigations.

Low conviction rates in trafficking cases also indicate weaknesses in the criminal justice system. Victims may hesitate to testify due to fear of retaliation, social stigma, or lack of confidence in authorities.

6.2.5 Inadequate Rehabilitation and Victim Support

The study also identifies significant shortcomings in rehabilitation programs designed to assist trafficking survivors.

Although government schemes such as **Ujjawala** and **Swadhar Greh** aim to provide shelter and rehabilitation services, their implementation varies widely across different states. Many rehabilitation facilities suffer from shortages of funding, trained staff, and psychological counselling services.

Without adequate economic opportunities and social support, survivors may remain vulnerable to re-trafficking.

6.3 Suggestions and Policy Recommendations

6.3.1 Adoption of a Comprehensive Anti-Trafficking Law

India would benefit from the adoption of a unified anti-trafficking law that consolidates existing legal provisions. Such legislation could establish clear definitions of trafficking offences, strengthen investigative mechanisms, and integrate victim protection measures within a single framework.

A comprehensive statute could also clarify the roles and responsibilities of different enforcement agencies.

6.3.2 Strengthening Institutional Coordination

Effective anti-trafficking strategies require cooperation among multiple government agencies including police departments, labour authorities, child protection institutions, and social welfare organizations.

Establishing centralized coordination mechanisms and specialized anti-trafficking units could improve communication between these agencies and enhance the effectiveness of enforcement efforts.

6.3.3 Expansion of Rehabilitation Programs

Rehabilitation policies should focus on long-term empowerment of survivors rather than short-term institutional care.

Programs providing vocational training, employment opportunities, and psychological counselling could help survivors rebuild independent lives and reduce the risk of re-trafficking.

Partnerships between government institutions and non-governmental organizations could improve the delivery of rehabilitation services.

6.3.4 Strengthening Data Collection Systems

Reliable data is essential for understanding trafficking patterns and designing effective policy responses.

India should develop centralized databases that integrate information from law enforcement agencies, labour departments, and child protection authorities. Improved data collection would enable policymakers to identify vulnerable regions and allocate resources more effectively.

6.3.5 Increasing Public Awareness

Public awareness campaigns can play an important role in preventing trafficking by educating communities about deceptive recruitment practices and available legal protections.

Community participation and civil society engagement are essential for identifying trafficking networks and supporting victims.

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6.4 Legislative Reforms

An effective response to trafficking requires a strong and coherent legislative framework capable of addressing the complex nature of trafficking crimes. Although India has enacted several laws that directly or indirectly address trafficking, the current legal framework remains fragmented and dispersed across multiple statutes. This fragmentation often creates difficulties in interpretation, enforcement, and coordination among the agencies responsible for combating trafficking.

One of the most significant reforms required is the **adoption of a comprehensive anti-trafficking statute** that consolidates existing legal provisions. At present, trafficking-related offences are addressed under different laws such as the *Immoral Traffic (Prevention) Act, 1956*, relevant provisions of the *Indian Penal Code*, the *Protection of Children from Sexual Offences Act, 2012*, and the *Bonded Labour System (Abolition) Act, 1976*.[37] While these statutes address particular forms of exploitation, they do not provide a unified framework capable of addressing trafficking in all its forms.

A comprehensive anti-trafficking law should clearly define the various elements of trafficking, including recruitment, transportation, harbouring, and exploitation. It should also recognize the different manifestations of trafficking that exist in contemporary society, such as forced labour, sexual exploitation, domestic servitude, child labour, and trafficking for illegal

[37] Immoral Traffic (Prevention) Act 1956; Indian Penal Code 1860; Protection of Children from Sexual Offences Act 2012; Bonded Labour System (Abolition) Act 1976.

adoption or organ removal. The definition of trafficking provided under **Section 370 of the Indian Penal Code**, which was introduced through the Criminal Law (Amendment) Act, 2013, represents an important step in this direction.[38] However, further legislative clarity is required to ensure effective implementation.

Another important aspect of legislative reform concerns the **strengthening of victim protection provisions**. Existing laws often focus primarily on criminal punishment of offenders but provide limited attention to the long-term welfare of survivors. Legislative reforms should therefore incorporate provisions ensuring access to rehabilitation services, legal assistance, medical care, and psychological counselling for victims of trafficking. International instruments such as the **United Nations Protocol to Prevent, Suppress and Punish Trafficking in Persons (Palermo Protocol)** emphasize the importance of protecting victims and safeguarding their rights.[39]

In addition, legislation should establish clear procedures for **victim identification and rescue operations**. In many cases, victims may initially be treated as offenders under laws relating to prostitution or illegal migration. Legal reforms must therefore emphasize that trafficked persons should be recognized primarily as victims entitled to protection and assistance rather than as individuals liable for prosecution.

Legislative reforms should also address the **regulation of recruitment agencies and labour intermediaries**, which often play a significant role in

[38] Indian Penal Code 1860, s 370 (inserted by Criminal Law (Amendment) Act 2013).
[39] Protocol to Prevent, Suppress and Punish Trafficking in Persons, Especially Women and Children (2000) supplementing the United Nations Convention against Transnational Organized Crime.

facilitating trafficking. Introducing stricter licensing requirements, monitoring mechanisms, and penalties for fraudulent recruitment practices could help reduce the risk of exploitation. Similar regulatory measures have been adopted in several countries to prevent labour trafficking in sectors involving migrant workers.

Another area requiring legislative attention is the **strengthening of investigative and prosecutorial mechanisms**. Specialized anti-trafficking units and dedicated courts could ensure that trafficking cases are investigated and adjudicated efficiently. Establishing fast-track procedures for trafficking cases may also help reduce delays within the criminal justice system and increase conviction rates.

Furthermore, legislation should incorporate provisions promoting **inter-agency coordination and data sharing** among law enforcement authorities, labour departments, immigration authorities, and child protection institutions. A centralized national database on trafficking cases could facilitate better policy planning and enable authorities to identify trafficking patterns across different regions.

Finally, legislative reforms should align India's domestic laws more closely with international standards established under global legal instruments. Compliance with international obligations not only strengthens domestic legal frameworks but also enhances international cooperation in combating transnational trafficking networks.

Conclusion

This research set out to examine three dimensions of India's response to the trafficking of women and children: the legal framework that governs it, the judicial response that has shaped its interpretation, and the policy gaps that have undermined its effectiveness. Across all three dimensions, the same fundamental tension has been apparent: between the formality of India's anti-trafficking commitments and the inadequacy of the institutional infrastructure deployed to honour them.

India has a constitutional prohibition on trafficking. It has criminal statutes that cover most major forms of exploitation. It has signed the Palermo Protocol and other international instruments that impose obligations of prevention, prosecution, and victim protection. It has a Supreme Court that has repeatedly and forcefully articulated a rights-based framework for addressing trafficking. What it has not had — consistently, seriously, and at scale — is the institutional will to translate these formal commitments into effective protection for the women and children they are meant to serve.

The reforms identified in this chapter are not aspirational; they are achievable. Comprehensive anti-trafficking legislation has been drafted and debated. Institutional models for specialised enforcement exist in other jurisdictions and have been tested in Indian pilot programmes. Rehabilitation frameworks that deliver measurable outcomes have been developed by NGOs operating within India's existing institutional environment. The data architecture required for evidence-based policy is technically feasible and financially modest relative to the scale of the problem it would address. The question is not whether India can build a more effective anti-trafficking system. The question is whether it will choose to.

The cost of not choosing — measured in the lives of women and children exploited each year in conditions that existing law is supposed to prevent — is not abstract. It is concrete, documented, and continuing. This research, in identifying where the system fails and what would be required to make it work better, aims to contribute — however modestly — to the case for the institutional seriousness that India's anti-trafficking commitments have long demanded and seldom received.

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